

PORT CLEVELAND

OPERATING AGREEMENT RESPECTING DOCKS 22-28 AND WAREHOUSE A,
WAREHOUSE 22, WAREHOUSE 24, WAREHOUSE 26, AND MAINTENANCE SHED

LOGISTEC USA INC.

Effective April 1, 2025

OPERATING AGREEMENT

THIS OPERATING AGREEMENT ("Agreement") is made and entered into at Cleveland, Ohio as of the day of December 12, 2024 to become effective as of April 1, 2025, subject to earlier commencement as set forth in Article II hereof, by and between the CLEVELAND-CUYAHOGA COUNTY PORT AUTHORITY, 1100 West 9th Street, Suite 300, Cleveland, Ohio 44113, a body corporate and politic duly organized and existing under the laws of the State of Ohio (hereinafter referred to as the "Authority"), and LOGISTEC USA INC., a Delaware corporation, authorized to do business in the State of Ohio with offices located at 775 Erieside Ave., Cleveland OH 44114 (hereinafter referred to as the "Operator").

WITNESSETH:

WHEREAS, Authority owns or has a leasehold interest in its General Cargo and International Terminals (Docks 22-28) which are described on Exhibit A (the "Authority Docks");

WHEREAS, the Authority has made or owns or leases improvements to the Authority Docks described in Article I (the "Facilities");

WHEREAS, the Authority desires to designate Operator as a Terminal Operator for the Authority Docks and Facilities and Operator desires to operate the Authority Docks and Facilities; and

WHEREAS, the parties desire that Operator provide exclusive stevedoring, terminal and related services for the handling of general cargoes (steel coils, plate, beams, wire rod, heavy lift, project, etc.) and containers to/from vessels at the Authority's General Cargo and International Terminals.

NOW THEREFORE, in consideration of the promises and of the mutual covenants, agreements and conditions set forth herein, the Authority and the Operator hereby covenant and agree as follows:

ARTICLE I FACILITIES TO BE OPERATED

1.1 Facilities. Authority owns or has leasehold interests in the Authority Docks shown on Exhibit A. The Authority does hereby designate Operator as a Terminal Operator of the below described Facilities to handle general cargoes (steel coils, plate, beams, wire rod, heavy lift, project, etc.) and containers to/from vessels at the Authority's General Cargoes and International Terminal as follows:

- (1) a portion of an existing warehouse, owned by the Authority, being approximately 76,300 square feet, known as Warehouse 26, and shown on Exhibit "A-1" attached hereto and made a part hereof ("Warehouse 26"), and such other structures or improvements located therein ("Warehouse 26 Facility");

- (2) the existing Warehouse, owned by Authority, being approximately 79,000 square feet, and known as Warehouse 24 and shown on **Exhibit "A-2"** attached hereto and made a part hereof and such other structures or improvements situated thereon, but shall not include associated office space ("Warehouse 24 Facility");
- (3) an existing building, owned by the Authority, being approximately 800 square feet, and known as the Maintenance Shed, as shown on **Exhibit "A-3"** attached and made a part hereof ("Maintenance Shed"), and such other structures or improvements situated within the fenced area (the "Maintenance Shed Facility");
- (4) a portion of an existing warehouse, owned by the Authority, being approximately 144,000 square feet known as Warehouse A, the portion thereof to be utilized by Operator being 138,000 square feet, plus an attached two-story office facility of approximately 4,300 square feet, and shown on **Exhibit "A-4"** attached hereto and made a part hereof ("Warehouse A"), and such other structures or improvements situated therein, including the overhead crane (the "Overhead Crane") located in the Middle Bay (the "Middle Bay") of Warehouse A, but excluding 6,000 square feet being used by Cleveland Port Railroad ("CPR"), a subsidiary of OmniTrax for locomotive storage (the "CPR Space") as depicted on **Exhibit "A-4"**;
- (5) the existing warehouse owned by Authority being approximately 21,300 square feet, and known as Warehouse 22 and shown on **Exhibit "A-5"** attached hereto and made a part hereof and such other structures or improvements situated thereon ("Warehouse 22 Facility" and together with the Warehouse A Facility, the Warehouse 24 Facility, Warehouse 26 Facility and Maintenance Shed Facility, the "Facilities" and together with the Authority Docks, collectively the "Premises").

The Operator will permit the storage of locomotive engines by CPR in the CPR Space. Authority and Operator acknowledge that CPR from time to time will be permitted to use the CPR Space to conduct maintenance on its locomotive engines, which includes the use by CPR of locomotive oil. Notwithstanding anything to the contrary in this Agreement, Authority, agrees (i) to cause CPR to refrain from and not permit any activity which is in violation of the Environmental Laws and/or which will involve the use, placement, handling, discharge, generation, production, storage, treatment, disposition, or transportation (hereinafter collectively referred to as the "Treatment") of any Hazardous Substances (as defined below), except in compliance with applicable laws and to take Remedial Action at its own expense caused by any negligence, willful misconduct or act or acts of omission or omissions of the Authority or CPR; and (ii) to cause CPR to be responsible for any and all claims, damages, obligations, charges, fines, judgments, penalties, liabilities, lawsuits, causes of action, proceedings, costs and expenses (including, without limitation, any and all sums paid for settlement of claims and attorneys', consultants' and experts' fees) existing, directly or indirectly, during or after the term of this Agreement, from or in connection with or due to the presence of Hazardous Substances which are present on the CPR

Space or any other property, wholly or in part as a result of, in connection with, out of, from or on an account of the negligence, willful misconduct or other act or acts of omission or omissions of CPR. OCR's responsibility shall include but shall not be limited to any and all reasonable costs incurred for any investigation of the site, or any Remedial Action, cleanup, removal or restoration mandated by a federal, state or local statute. Operator agrees not to interfere with the operations of CPR in the CPR Space or in any area outside the Premises but on additional Authority facilities as provided in Section 1.7. Authority agrees that it shall cause CPR to not interfere with the Operator's quiet enjoyment of the Premises. The Authority and Operator acknowledge that a Phase II environmental audit of the CPR Space will be recommended. The Authority agrees to forego the need for such a Phase II environmental audit to establish the baseline condition of the CPR Space on the understanding that the Authority agrees to:

- (a) cause CPR to inform the Authority and Operator of any environmental incident including any Release affecting the CPR Space, the land or groundwater thereunder caused by the CPR, its employees, officers, agents, contractors, customer, visitors, or licensees during the term of this Agreement that requires Remedial Action ("CPR Environmental Incident"); and
- (b) cause CPR to remediate the CPR Environmental Incident, at OCR's cost, by taking the appropriate Remedial Action, as hereinafter defined without any obligation whatsoever on CPR at any time to effect or pay for any remediation other than that directly arising from the CPR Environmental Incident.

The rights and obligations of the Authority and Operator under this Section 1.1 shall survive any termination or expiration of this Agreement, as hereinafter defined.

1.2 Services. Operator will provide exclusive stevedoring, terminal and related services for the handling of general cargoes (steel coils, plate, beams, wire rod, heavy lift, project, etc.) and containers to/from vessels at the Authority's General Cargo and International Terminals (Docks 22-28). Operator will manage all activities at the general cargo and international piers in an efficient, responsible manner, and comply with all applicable rules and regulations concerning environmental issues, occupational health & safety, Homeland Security, and US Coast Guard (the "Services").

1.3 Access Road. The Authority further grants to the Operator a license, in common with others, over, across and upon that portion of the roadway shown as the "Access Road" on **Exhibit B**, attached hereto and made a part hereof, for the purpose of securing roadway access to the Premises. The Operator shall also have access to the Premises through the main gate located at the east end of the Access Road at the intersection of Erieside Avenue and West Third Street; provided, however, that the Operator, its employees, officers, agents, contractors, customers, visitors and licensees shall, at all times, comply with such rules and regulations, including the Tariff (as hereinafter defined), adopted by the Authority with respect to the use of the roadways and gate.

1.4 Other Roadways. The Authority further grants to the Operator the right, in common with others, of ingress and egress over and across all established roadways, drives, rights of way and streets, whether dedicated or not, adjoining, adjacent to, through or around the Premises and connecting the Premises to dedicated streets or roads, but subject to the Authority's rules and regulations, including the Tariff.

1.5 Authority's Access. The Authority reserves the right of access to the Premises and the use of all utility lines, poles, equipment and facilities necessary for the use and occupancy of the Premises.

In addition, the Authority shall have the right to access the Premises for other purposes, subject, in all cases, to the Authority's compliance with Operator's rules and policies regarding access, safety, security, and confidentiality (but only to the extent permitted under Ohio or Federal law.

1.6 Berthing Rights. So long as this Agreement is in effect Operator shall have preferential berthing rights at the Authority Docks, subject to Section 1.7.

1.7 Use of Additional Areas of the Authority. Solely in connection with this Agreement and in strict compliance with Authority's rules and regulations, including its Tariff, Operator shall have the preferential right to use and access Warehouses 22, 24, 26, A, and the Maintenance Shop, as well as Docks 20, 22, 24, 26, 28, and the West 3rd Lot at no additional cost to the Operator, other than the Fixed Charges and Tonnage Assessment outlined in **Exhibit C**.

1.8 Modification of Facilities. Operator recognizes that its use of certain portions of the Authority's additional port facilities and property, other than the Premises (collectively "Additional Facilities"), is in common with other users who may have leases, or other rights to use, other portions of Additional Facilities and that Operator's use must be coordinated with these competing uses and further agrees that from time to time Authority may, at its sole cost and expense, remove from service, repair, modify, relocate, renovate or otherwise alter its facilities ("Modification"), including, but not limited to, roads, access points, gates, railroads, docks, wharfs (including moving where Operator may berth), utilities and causal storage areas (but not including the Premises) as part of Authority's efforts to improve, maintain and put its facilities to a use it has assessed, in its sole judgment, is most appropriate for the Authority and/or the people of Cuyahoga County, and that such Modification, and any inconvenience caused to Operator ultimately inures to the long term collective benefit of the users of the Premises and/or the public and shall not constitute a default of Authority's obligations hereunder or constitute a basis upon which charges may be abated. Vehicular access between the Authority Docks and publicly dedicated roadways will not be denied by Authority as a result of such Modifications except for any temporary closing which does not materially affect Operator's access. If, however, Operator's ability to carry out its operations is affected in a material way, the parties agree to meet in good faith to discuss reduction of the Basic Charges.

1.9 Equipment Lease.

(a) Use of Equipment. Subject to availability, Operator may use equipment of Authority, including the Leased Equipment (as defined below), yard truck (1), and mobile

dock ramp (1), subject to all terms and conditions of Port Authority Tariff No. 1-B and this Agreement.

(b) Grant of Lease. The Authority hereby leases to Operator, and Operator hereby leases from the Authority, two (2) Cummins powered Hyster Reach Stackers, a Yard Spotter and two (2) Liebherr LHM 280 mobile harbor cranes (collectively the "Leased Equipment") on the terms as set forth below.

(c) Use. Operator may operate and use the Leased Equipment for the purpose of providing certain services to the Authority, including loading, unloading and storage of cargo pursuant to this Agreement.

(d) Training. All operators of the Leased Equipment must complete training prior to operating the Leased Equipment, including viewing any training DVD and reading the operator's manual. In addition, Operator will provide annual training for all operators on the Leased Equipment.

(e) Leased Equipment Checks. Operator shall complete equipment inspections as detailed in the operator's manual. Personnel performing the inspections shall be trained and knowledgeable regarding the equipment and inspection requirements and report any unusual results to the Authority and Operator.

(f) Damage and Abuse. The Authority hereby represents and warrants to Operator that the Leased Equipment is in good condition and working order. EXCEPT AS EXPRESSLY SET FORTH ABOVE, AUTHORITY MAKES NO WARRANTY WHATSOEVER, INCLUDING WITHOUT LIMITATION ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (c) WARRANTY AGAINST INTERFERENCE; OR (d) WARRANTY AGAINST INFRINGEMENT OF ANY PATENT, COPYRIGHT, TRADEMARK, TRADE SECRET, OR OTHER PROPRIETARY RIGHTS OF A THIRD PARTY; WHETHER ARISING BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE, OR OTHERWISE. Operator's responsibility to effect repairs to the Leased Equipment is limited to repairing damage caused by Operator, its employees, officers, agents, contractors, customers, visitors or licensees. This includes puncture or damage to tires. Operator shall not be responsible to make repairs associated with normal wear and tear. The parties agree to conduct an annual condition survey of the Leased Equipment.

(g) Safe Operation. Operator agrees to use the Leased Equipment for designed uses only and in a safe manner as per the operator's manual and applicable equipment training documentation.

(h) Modifications. Modifications to the Leased Equipment are not permitted without written approval from the Authority.

ARTICLE II

TERM

2.1 Term. The term of this Agreement shall be for a period of one (1) year commencing at 12:01 a.m. on April 1, 2025 ("Commencement Date") and ending at 11:59 p.m. on March 31, 2026 (the "Initial Term").

2.2 Renewal Term. The term of this Agreement may be extended for nine (9) subsequent one (1) year renewals upon mutual agreement of the parties (the "Renewal Terms"). Each Renewal Term shall begin on April 1 and expire on March 31 of the following year. The Initial Term and the Renewal Term shall be defined collectively as the "Term."

ARTICLE III FIXED CHARGES AND TONNAGE ASSESSMENT/OTHER CURRENT CHARGES

3.1 Basic Charges. During the term of this Agreement, the Operator agrees to pay to the Authority the fixed charges and tonnage assessment according to the Master Fixed Charges , Equipment Rental and Tonnage Assessment Schedule, as attached hereto as Exhibit C, and made a part hereto.

3.2 Maintenance Charges. The Operator will pay the Authority as a Maintenance Charge, for any maintenance requested by the Operator and performed by the Authority's employees on the Premises for maintenance which is the Operator's responsibility per the terms of this Agreement, at a charge of \$50 per hour, such payment to be made 30 days from the date of the Authority's invoice.

3.3 Reimbursement Charges. Operator shall reimburse Authority for any penalties or fines levied against the Authority by the United States Coast Guard or Department of Homeland Security relating to violations to the Authority's Port Security Plan caused by Operator or any of its employees who are on hire or on payroll at the time of the violation.

3.4 Additional Charges. If the Operator does not perform any term, covenant or condition of this Agreement on its part to be performed, the Authority, at its option, may, but shall not be obligated to, expend such sum as may be necessary to perform and fulfill such term, covenant or condition and any and all sums so expended, with interest thereon at the rate of twelve percent (12%) per annum from the date of such expenditure, shall be paid by the Operator to the Authority on demand. The Operator shall pay, as additional charges, any amount Authority pays which was payable by Operator or to reimburse Authority's performance of any obligation of Operator or as additional charges. Notwithstanding any provisions herein, except if the delay or failure to make such payment or perform such obligation may create an imminent risk to persons or property, the Authority shall not expend such sum under this Agreement unless it has sent a written notice to Operator of the non-payment or non-performance and afforded Operator an opportunity to make such payment or other such performance on its own behalf within a reasonable delay.

3.5 All the above charges shall be due within thirty (30) calendar days of receipt of such invoice.

ARTICLE IV TAXES, ASSESSMENTS AND OTHER CHARGES

As additional and further charges, the Operator agrees to pay and discharge promptly, when due and payable, all taxes, sewer and water charges, assessments and other imposts and levies of any kind applicable to any period during the Term of this Agreement, which have been or may hereafter be imposed, charged, assessed or levied upon or against, or which have or may become due and payable with respect to the Premises or any part thereof during the term of this Agreement or the renewal or extension thereof; provided, however, that the Operator shall not be obligated to pay any taxes in the nature of income, excess profits, inheritance, devolution, gift, transfer, incorporation or franchise taxes which may be imposed, charged, assessed or levied against the Authority; and provided, further, that said taxes, sewer charges, water charges, assessments and other charges shall, as to the year or years in which this Agreement shall commence and the year or years in which this Agreement shall be terminated, be apportioned according to the part of such year during which the Operator shall have possession of the Premises and, if the tax rate for such year has not been determined, it shall be assumed that the tax rate for such year shall be the same as the previous year; and provided, further, that, as to all charges and assessments which are imposed, charged, assessed or levied but are payable in installments, the Operator shall be liable only for those installments which shall be applicable to any period during the term of this Agreement. If the Authority shall so request, the Operator shall furnish to the Authority, promptly, after each payment required to be made by the Operator pursuant to this Section IV, an original or duplicate official receipt evidencing such payment. Operator shall have the right to contest in its own name or, with the Authority's prior written consent, on behalf of the Authority, the imposition of any tax or other charge levied or assessed against the Premises or any of Operator's property during the Term of this Agreement and the Authority agrees to cooperate with Operator in connection with any such good faith contest.

ARTICLE V USE OF PREMISES

5.1 Use of Premises; Equal Provision of Services. The Operator agrees that the Premises shall be primarily used during the term hereof to provide the Services, including those defined in Section 1.2 for the loading, unloading and storage of cargo or as a maintenance shed in the case of the Maintenance Shed Facility. The Operator shall not use or permit the Premises to be used for any unlawful or illegal purpose. The Operator shall, at its sole expense, comply with all applicable laws, ordinances, orders and regulations of Federal, State, County and municipal authorities and with any direction of any public officer or officers, pursuant to law, and with any restrictions of record, which shall impose any liability, order or duty upon the Authority or the Operator with respect to the Operator's use or occupancy of the Premises so long as such laws, ordinances, orders and regulations do not relate to any obligations imposed upon the Authority under the provisions of this Agreement, in which event the Authority shall so comply with the same.

Operator agrees to operate a first-class public terminal, handling bulk, break-bulk, container and other marine cargo, as applicable. All carriers will be handled on a non-discriminatory basis, and provided with comparable service regardless of (or lack of) corporate affiliation with Operator. Comparable service includes, but is not limited to productivity and vessel turn time, berth access, cargo damage and other related services. Operator undertakes that the rates charged to carriers in consideration of the Services will be established in accordance with customary market practices. Authority and Operator agree that excellent service to all carriers

calling at the terminal is important. Operator agrees to use its commercially reasonable efforts to anticipate labor needs, and to take all reasonable steps to ensure that Operator has adequate labor to promptly and efficiently service all vessels scheduled to call at, or reasonable anticipated to arrive at, the terminal.

In utilizing the Premises, Operator will, if available, conduct all rail shipments through CPR as and when required by the Operator. Notwithstanding the above, Operator shall not be responsible for any delays in the Services caused, directly or indirectly by CPR.

The Operator shall be excused from performing its obligations in case of an event of Force Majeure (as hereinafter defined) which prevents such performance upon notice to the Authority and until such condition ceases. The Authority further agrees to reduce the Basic Charges and Additional Charges proportionately to the production time lost and the percentage of the space on the facility that is lost during which the Operator is unable to provide the Services due to an event of Force Majeure.

5.2 Terms and Conditions of Terminal Operators. The use hereunder is subject to the "Terms and Conditions of the Terminal Operators," as it may be amended from time to time, a current copy of which is available online on the Authority's website with the Authority (the "Tariff"). In the event of inconsistencies between this Agreement and the Tariff, the Agreement will apply.

5.3 Continued Use. Operator is required to actively operate the Premises as warehouses or maintenance shed, in the case of the Maintenance Shed Facility, at all times during the term of this Agreement. It shall be preclusively presumed that Operator is no longer operating the Premises as warehouses and Operator has abandoned the Premises if (i) it is not open for business for 20 consecutive business days; or (ii) if it is not open for business 80 days out of a 100-day period. Any days the Premises is not able to operate as a result of damage or destruction to the Premises or because of Force Majeure shall not be applied to the above calculations.

"Force Majeure" any circumstance beyond the Operator's reasonable control, including but not limited to Act of God, war, pandemic, epidemic, civil disturbances, severe port congestion, strikes, any governmental authority, or fire.

5.4 Environmentally Hazardous Uses. Operator, for and on behalf of itself and its agents, partners, employees, contractors, invitees, servants, subtenants, officers, licensees, franchisees, successors and assigns agree (i) to refrain from and not permit any activity which is in violation of the Environmental Laws and/or which will involve the use, placement, handling, discharge, generation, production, storage, treatment, disposition, or transportation (hereinafter collectively referred to as the "Treatment") of any Hazardous Substances (as defined below), except in compliance with applicable laws and to take Remedial Action at its own expense caused by any negligence, willful misconduct or act or acts of omission or omissions of any of them; and (ii) to indemnify and hold harmless Authority and its officers, partners, agents, operators, employees, invitees, servants, licensees, contractors, successors, assigns and mortgagees from and against any and all claims, damages, obligations, charges, fines, judgments, penalties, liabilities, lawsuits, causes of action, proceedings, costs and expenses (including, without limitation, any and all sums paid for settlement of claims and reasonable attorneys', consultants' and experts' fees)

existing, directly or indirectly, during or after the term of this Agreement, from or in connection with or due to the presence of Hazardous Substances which are present on the Premises or any other property, wholly or in part as a result of, in connection with, out of, from or on an account of the negligence, willful misconduct or other act or acts of omission or omissions of any of them. This indemnification shall include but not be limited to any and all reasonable costs incurred for any investigation of the site, or any Remedial Action, cleanup, removal or restoration mandated by a federal, state or local statute. Notwithstanding the foregoing, the obligation to indemnify in this Section 5.4 shall not extend to any and all claims, damages, obligations, charges, fines, judgments, penalties, liabilities, lawsuits, causes of action, proceedings, costs and expenses (including, without limitation, any and all sums paid for settlement of claims and attorneys', consultants' and experts' fees) existing, directly or indirectly, during or after the term of this Agreement, from or in connection with or due to the presence of Hazardous Substances which are present on the Premises or any other property, wholly or in part (but only to the extent Operator is not responsible for same) as a result of, in connection with, out of, from or on an account of the negligence, willful misconduct or other act or acts of omission or omissions of the Authority, CPR or any other third-party, for and on behalf of themselves and their agents, partners, employees, contractors, invitees, servants, subtenants, officers, licensees, franchisees, successors, assigns, and customers.

No later than ninety (90) days after the Commencement Date of the Initial Term of the Agreement, an environmental confirmation assessment by a firm, mutually acceptable which assessment is mutually acceptable to the parties in scope and methodology, will be performed at the joint expense of the Operator and the Authority (such assessment being hereinafter called the "Initial Study"), and the Initial Study shall be provided to the Authority and the Operator for their written acceptance.

Authority agrees that the Operator shall have no liability whatsoever for the current environmental condition of the Premises, the land or groundwater thereunder at any time, save and except that the Operator acknowledges and agrees to:

- (a) inform the Authority of any known environmental incident including any Release affecting the Premises, the land or groundwater thereunder caused by the Operator, its employees, officers, agents, contractors, customer, visitors, or licensees during the term of this Agreement that requires Remedial Action ("Environment Incident"); and
- (b) remediate the Environmental Incident, at the Operator's cost, by taking the appropriate Remedial Action without any obligation whatsoever on the Operator at any time to effect or pay for any remediation other than that directly arising from the Environmental Incident with the obligation on the Authority to take and pay for whatever other remediation is necessary to comply with any Environmental Laws.

The rights and obligations of the Authority and Operator respecting the Premises under this Section 5.4 shall survive any termination or expiration of this Agreement.

Notwithstanding anything contained herein, the Authority accepts that since the full extent of the environmental condition of the Premises is not documented by an environmental assessment, the Authority shall be fully responsible for any and all Hazardous Substances (other than Hazardous Substances arising exclusively from an Environmental Incident occurring during the Term) (the "Contamination") found in, on or under the Premises, whether such Contamination occurred before, during or after the Term provided, excepting however, if the Environmental Incident arises from the conduct of Operator, its employees, officers, agents, contractors, customer, visitors, or licensees during the Term of this Agreement.

For purposes hereof, the following terms have the following meanings:

"Environmental Laws" means all applicable Federal, state and local laws, regulations and ordinances relative to air quality, solid waste management, hazardous waste management, hazardous or toxic substances or the protection of human health or the environment, including, but not limited to, the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. Section 9601, et seq.) ("CERCLA"), the Hazardous Material Transportation Act (49 U.S.C. Sec. 1801, et seq.), the Federal Water Pollution Control Act (33 U.S.C. Sec. 1251, et seq.), the Resource Conservation and Recovery Act of 1976 (42 U.S.C. Sec. 6901, et seq.), the Clean Air Act (42 U.S.C. Sec. 7401, et seq.), the Toxic Substances Control Act (15 U.S.C. Sec. 2601, et seq.), and the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. Sec. 136, et seq.), as each of these laws may have been amended through the date of this Agreement, and any analogous state or local statutes and the regulations promulgated pursuant thereto."

"Hazardous Substances" means and includes any substance which is defined, listed or identified as a 'hazardous waste' or a hazardous substance under any Environmental Law, including, without limitation, petroleum, asbestos, and polychlorinated biphenyls ("PCB's"), petroleum, petroleum by-products (including, but not limited to, crude oil, diesel oil, fuel oil, gasoline, lubrication oil, oil refuse, oil mixed with other waste, oil sludge, and all other liquid hydrocarbons, regardless of specific gravity), natural or synthetic gas products and/or any hazardous substance or material, waste, pollutant or contaminant, defined as such in (or for the purposes of) which are regulated by, or form the basis of liability under any "Environmental Laws."

"Release(d)" means as this term is defined in CERCLA, 42 U.S.C. §9601.

"Remedial Action" means any action required under and performed in accordance with any Environmental Laws to (i) clean up, remove, treat, or in any other way address any Hazardous Substance onto the Premises or, (ii) prevent the Release or threatened Release, or minimize the further Release of any Hazardous Substance so it does not migrate or endanger or threaten to endanger public health or welfare or the environment.

ARTICLE VI

CONSTRUCTION OF IMPROVEMENTS, MODIFICATIONS OR OTHER CHANGES

6.1 Modifications. The Operator shall only have the right, at any time and from time to time during the Initial Term, to make, at its sole cost and expense, changes, additions, restorations, improvements and alterations (including signs) (“Operator Modifications”) to the Premises with the prior written approval of the Authority.

6.2 Compliance with Laws. Any Operator Modifications shall be made promptly and in a good and workmanlike manner and in compliance with all applicable permits, authorizations and building and zoning laws or ordinances and with all other laws, ordinances, orders, rules, regulations and requirements of all Federal, State and municipal governments, departments, commissions, boards and officers.

6.3 Cost. The cost of any and all Operator Modifications made by Operator shall be paid upon such terms as will assure that the Premises and the Access Road shall, at all times, be free of liens for services performed or labor and materials supplied or claimed to have been supplied to the Premises.

6.4 Title. The title to all improvements made by the Operator, as provided herein (excluding the Operator’s trade fixtures), shall vest in the Authority when installed in or affixed to the Premises and shall be delivered to the Authority upon the expiration or termination of this Agreement. The Operator shall, if requested by the Authority, make, execute and deliver a good and sufficient instrument of conveyance evidencing transfer of the improvements to the Authority. If the Operator removes its trade fixtures, the Operator shall repair any damage to the Premises caused by their removal.

ARTICLE VII INSURANCE

7.1 Insurance. Operator shall, at its own expense, take out and maintain during the Term of this Agreement (i) a comprehensive general liability insurance policy in the amount set forth below, wherein the Authority shall be named as an additional insured, as its interests may appear, but only with respect to its liabilities arising out of Operator’s activities pursuant to this Agreement as shall protect itself and the Authority from claims for damage for loss by any person and personal injury, and bodily injury, including accidental death, as well as from claims for property damage, which may arise from the exercise of any right or the performance of any obligation of Operator under this Agreement, whether such exercise or performance is by Operator, its agents, contractors or subcontractors, or anyone directly or indirectly employed by any of them; and (ii) property damage insurance as set forth below; and (iii) workers' compensation insurance as set forth below .

Operator shall also cause its general contractors and subcontractors who make Modifications to the Premises to take out and maintain during their work on the Premises such comprehensive general liability insurance provided for under Section 7.1(A), wherein the Authority shall be named as an additional insured, as its interests may appear, but only with respect to its liabilities arising out of their respective operations, as shall protect themselves, the Operator and the Authority from claims for damage for loss by persons, personal injury and bodily injury, including accidental death, as well as from claims for property damage, which may arise from the exercise of any right or the performance of any obligation under this Agreement, whether such

exercise or performance is by general contractors, subcontractors, their subcontractors, or anyone directly or indirectly employed by any of them.

The policy or policies required hereunder shall have limits as may be reasonably required by the Authority from time to time, provided such limits shall not be less than the following limits:

(1) Public Liability Insurance:

- (a) Not less than Ten Million Dollars (\$10,000,000) single limit coverage for loss by persons and personal injuries or bodily injuries, including accidental death in any one occurrence, and damages to property, and not less than Ten Million Dollars (\$10,000,000) in the aggregate.

(2) Property Insurance:

- (a) "All Risk" coverage in an amount equal to full replacement cost of Improvements, including Modifications, and in an amount equal to actual cash value of equipment, including cranes, and personal property associated the Premises; and

(3) Workers' Compensation or Other Applicable Workers' Insurance Coverage:

- (a) Not less than applicable statutory limits and coverage covering all employees working at the Premises.

The policy or policies required hereunder shall provide as follows: **"The insurer agrees to send written notice by certified mail to the Cleveland-Cuyahoga County Port Authority, 1100 West Ninth Street, Suite 300, Cleveland, Ohio 44113, at least twenty (20) days prior to cancellation of the coverage specified by this policy."**, or the equivalent.

Upon execution of this Agreement, Operator shall provide to the Authority a certificate or certificates of insurance. The certificate or certificates of insurance shall, as to form, coverage and carrier, be as is commercially customary for such overages. Operator shall not be permitted to operate the Premises until such certificate or certificates of insurance have been submitted to the Authority. Operator acknowledges that neither Operator nor Operator's employees are allowed in or around the Premises until the Authority has received and accepted said certificate or certificates.

Nothing in this Agreement shall be construed to prevent the Authority from taking out and maintaining additional insurance at its sole discretion and at its sole cost.

Nothing in this Agreement shall be construed as requiring Operator to obtain or maintain any insurance coverage or policy other than the public liability insurance, property insurance and worker's compensation coverage (or similar coverage as agreed upon with the International Longshoremen Association), notwithstanding any provision to the contrary in any other agreement or instrument related to the operation and control of the Premises or any portion thereof.

ARTICLE VIII REPAIRS

8.1 Operator Obligations. Except to the extent provided in Section 8.2, the Operator shall, during the term of this Agreement take good care of the Premises and, at its own expense, maintain and make all repairs and replacements necessary as a result of damage caused by the Operator, its employees, officers, agents, contractors, customers, visitors and licensees to keep the Premises in the condition set forth in Article IX. All operation, upkeep, repairs and replacements to the air conditioning and heating systems, sprinklers, electrical systems, fixtures and equipment, plumbing, and floor covering shall be the responsibility of the Operator. All repairs made by the Operator shall be equal in quality to the original work. The Authority acknowledges and agrees that notwithstanding anything to the contrary in this Agreement or any Tariff, the Operator shall have no liability for the repairing of normal wear and tear to the Premises. Notwithstanding the foregoing, the Authority hereby represents and warrants to the Operator that the air conditioning, heating systems, sprinklers, electrical systems, fixtures and equipment, plumbing and floor covering are in good condition and working order and that the Operator's responsibility to effect repairs thereto is limited to repairing damage caused by the Operator, its employees, officers, agents, contractors, customers, visitors, or licensees and normal maintenance. Notwithstanding anything to the contrary in this Agreement, the Operator shall not be responsible to maintain or make repairs, to the Premises, resulting from damage caused, in whole or in part (but only to the extent the Operator is not responsible for same), by any third-party other than Operator and such third-party's employees, officers, agents, contractors, customers, visitors or licensees.

8.2 Authority's Obligations. The Authority agrees that it will, at its own expense, maintain, repair and replace, as necessary, the roof, foundation, structural columns and structural supports of the Premises; provided, however, that any damage to the foregoing caused by the negligent, reckless or willful acts of the Operator or its employees, officers, invitees or agents, subtenants, licensees or assignees shall be the responsibility of the Operator to repair or replace. The Authority shall have the responsibility for maintaining the railroad tracks and related switches and roadbeds (unless the same are damaged by the negligent or reckless use by the Operator, except normal wear and tear) and shall have access to the Warehouse A Facility in order to attend to such maintenance. The Authority shall be responsible for any damage, due to the Authority's improper or inadequate maintenance, to any cargo in Operator's possession and stored at the Premises. Notwithstanding the foregoing, the Authority and Operator acknowledge and agree that the Authority shall, at its own cost, have the Overhead Crane described in Section 1.1 inspected by an experienced and competent firm, which firm shall advise the Authority and the Operator in a report (the "Report") on the condition and working order functioning of the Overhead Crane during the Term of this Agreement. The Authority undertakes, at its cost, to forthwith rectify any deficiencies identified in the Report. Thereafter, the Operator shall be responsible to maintain the overhead crane in a proper functioning condition, normal wear and tear excepted, during the term of this Agreement. If this Agreement is extended, the Authority and Operator shall, at that time, agree on the need for an updated inspection.

8.3 Additional Operator Obligations. The Operator (if third (3rd) parties are not obligated with respect thereto) shall also, at its expense, maintain, keep open, free from obstruction and in good repair all electric, water, gas, sewer and other utility lines and connections, conduits, pipes, catch basins, manholes, poles, lighting fixtures and other related facilities situated on, under

or through the Premises. Notwithstanding the foregoing, the Authority hereby represents and warrants to the Operator that the electric, water, gas, sewer, and other utility lines and connections are in good condition and working order and that the Operator's responsibility to effect repairs thereto is limited to repairing damage caused by the Operator, its employees, officers, agents, contractors, customers, visitors, or licensees, except for normal wear and tear.

8.4 Condition Survey; "As Is" Condition. Except as may be otherwise provided, the Operator's use of the Premises shall be an acknowledgement that it has inspected the Premises and accepts the same in its "AS IS" condition as at the date it first gained possession of the Premises which is the Commencement Date set forth in Article II for all of the Premises except the West Third Lot, which date of possession is the Operator's commencement of use, if any (collectively the "Possession Date"); provided, however, the parties agree that Operator is not responsible for anything disclosed in the Initial Study pursuant to Section 5.4. Operator further acknowledges that the Authority has made no representations or warranties concerning the condition of the Premises and Authority and Operator shall rely on the Operator's own inspection of the Premises to establish existing conditions. Operator shall have no recourse against the Authority for loss of revenue attributable to or incidental costs incurred as a result of any patent or latent defects.

ARTICLE IX CARE OF PREMISES

The Operator shall, at all times, at its sole cost and expense, put, keep and maintain each of the Warehouse 24 Facility, Warehouse 26 Facility, Warehouse A Facility, Warehouse 22 Facility, and Maintenance Shed, if used, in a clean, safe, sanitary and sightly condition, free of debris and weeds, and in good order and repair, except normal wear and tear consistent with the condition of each of such Premises as at their respective Possession Date as determined by the Property Surveys referenced in Section 8.4 hereof.

ARTICLE X NET CLAUSE

It is the purpose and intent of the Authority and the Operator that all charges payable pursuant to the provisions of this Agreement shall be absolutely net to the Authority (except for repairs which are the obligation of the Authority under Section 8.2) so that this Agreement shall yield, net to the Authority, such charges in each year during the term of this Agreement, free of any impositions of any kind charged, assessed, or imposed upon or against the Premises, and without abatement, deduction or set off by the Operator, and the Authority shall not be expected or required to pay any such charge, assessment or imposition, or be under any obligation or liability hereunder except as may otherwise be specifically provided in this Agreement.

ARTICLE XI DAMAGE OR DESTRUCTION

11.1 Damage to be Repaired. In the event of loss or destruction of or damage or injury to the Premises, or any part thereof, by fire, the elements or any other cause or causes whatsoever, and restoration of same can be completed within ninety (90) days of the date of such damage or destruction, this Agreement shall not terminate; provided, however, if such damage or destruction

occurs during the last six (6) months of the Term, the Authority shall have no obligation to repair or restore the Premises if Operator notifies the Authority of its intent not to renew any remaining Renewal Term. Except as hereinbefore provided, the Authority shall promptly repair, restore or rebuild the damaged portions of the Premises to a condition as nearly as reasonably possible to the conditions they were in immediately prior to such damage or destruction, or with such changes and alterations as may be agreed to by the Authority and the Operator. This obligation of the Authority is conditioned upon sufficient insurance proceeds being available from the insurance required to be maintained by the Authority and Operator respectively to complete the repair and Authority and Operator not being in default of any of the provisions of the Agreement. If there are not sufficient insurance proceeds to complete the repair, Operator shall have the right to terminate this Agreement upon written notice to the Authority. If the casualty, repairing or rebuilding involved shall render the Premises untenable in whole or in part, a proportionate abatement of the fixed charges shall be allowed from the date when the damage occurred until the date the Authority completes the repairs or rebuilding or the Operator is able to use the damaged area, whichever first occurs, said proportion to be computed on the basis of the relation which the gross square foot area of the space rendered untenable bears to the floor space of the Premises.

11.2 Damage Allowing for Termination. In the event of loss or destruction of or damage or injury by fire, the elements or any other cause whatsoever, to: (i) the Premises, or any part thereof; or (ii) to those portions of the Additional Premises used by Operator in common with or in preference to others, in conjunction with the Premises, to the extent that it substantially impairs Operator's ability to economically use the Premises, and it is forthwith determined that (the "Determination Date") restoration of the Premises cannot be completed within ninety (90) days of the date of such damage or destruction, and in the case of (ii) above, Authority is or has committed to effecting such restoration, then either the Authority or the Operator may elect to terminate the within Agreement by giving written notice of such termination to the other within thirty (30) days of the Determination Date, and charges shall be apportioned as of the date of occurrence of such damage or destruction. If neither the Authority nor the Operator so elects to terminate, then the Authority shall proceed to restore the Premises and/or the Additional Premises, and the Operator shall be accorded a charges abatement, all as described in Section 11.1 hereof. This obligation of the Authority is conditioned upon sufficient insurance proceeds being available from the insurance required to be maintained by the Authority and Operator to respectively to complete the repair and Authority and Operator not being in default of any of the provisions of the Agreement.

ARTICLE XII SUBORDINATION TO MORTGAGES

The execution, delivery and performance by the Authority of this Agreement and the consummation of the transactions contemplated hereby will not violate any provisions of law or regulation applicable to the Authority, or of any order, writ or decree of any court or governmental instrumentality or Code of Regulations of the Authority, or of any mortgage, indenture, contract, agreement or other undertaking to which the Authority is a party or which is binding upon the Authority or upon any of its assets.

The Operator agrees that this Agreement shall be subject and subordinate to any mortgages or other financing encumbrances that are now an encumbrance upon or that may hereafter be placed upon the Premises, and to any and all advances to be made thereunder and to the interest

thereon, and any and all renewals, replacements and extensions thereof; provided, that any such mortgage or a separate agreement furnished by such mortgagee to the Operator provides in substance that, if by foreclosure or otherwise, such mortgage or any successor in interest shall come into possession of the Premises or become the owner of the same or take over the rights of the Authority in the same, it will not disturb the possession, use or enjoyment of the Premises by the Operator, its successors or assigns nor disaffirm this Agreement or the Operator's rights or estate hereunder, so long as all of the obligations of the Operator are fully performed in accordance with the terms of this Agreement. If such mortgagee prevents Operator from carrying out this Agreement, the Operator may terminate this Agreement.

ARTICLE XIII ASSIGNMENT

13.1 Assignment. The Operator shall not, without the prior written consent of the Authority in each instance, assign this Agreement or mortgage or encumber the Premises, or any interest therein, or permit the Premises or any part thereof to be used or occupied by any person or persons other than the Operator, or allow any transfer of this Agreement or any lien upon the Operator's interest by operation of law. Any unpermitted assignment, mortgage or encumbrance shall be void and unenforceable. Any compensation Operator receives from an assignee of this Agreement over and above the charges Operator is obligated to pay, shall be paid to Authority as additional charges. Notwithstanding the foregoing, the Authority consent requirement provisions of this Section 13.1 shall not apply to or prohibit Operator from assigning, transferring, or otherwise conveying any of its rights hereunder to any entity owned or controlled by Operator or by any of Operator's affiliates but Operator shall provide Authority with thirty (30) days written notice following such assignment or transfer.

13.2 Consent. Consent to any assignment, use or occupancy by the Operator shall not relieve the Operator from liability hereunder for the payment of charges or performance or observance of any of the terms and conditions of the Agreement nor operate as a waiver of the necessity for a consent to any subsequent assignment, use or occupancy.

ARTICLE XIV ACCESS TO THE PREMISES AND OPERATOR'S RECORDS

14.1 Authority's Access. The Authority or the Authority's agents shall have the right to enter the Premises at all reasonable times to examine the same, or to show the same to prospective Operators upon reasonable advance notice; and to make such repairs as the Operator is obligated to make hereunder but has failed to after written notice from the Authority. The Authority shall be allowed to take all materials and equipment into the Premises that may be required to carry out any of the foregoing. The Authority agrees, however, to use its best efforts to prevent any unnecessary inconvenience to the Operator in exercising any of the foregoing rights.

14.2 Exhibit Premises. After prior notice to the Operator, the Authority may exhibit the Premises to prospective lenders and Operators at reasonable times.

14.3 No Abatement. The Authority may exercise all or any of the foregoing rights without being deemed guilty of an eviction or disturbance of the Operator's use and possession,

without being liable in any manner to the Operator, and without elimination or abatement of charges, or payment of other compensation, and such acts shall in no way affect this Agreement.

14.4 Authority Access to Records. The Authority will be provided access, upon reasonable prior written notice during business hours, subject to Operator's rules and policies regarding access, safety, security and confidentiality (but only to the extent permitted under Ohio or Federal law) without interfering with the conduct of Operator's business to all Operator's business operations, books, files and records and related financial data. Operator will cooperate with the Authority inspection and audit thereof. The Authority's inspection or audit will be at its sole cost and expense, and shall be made solely for purposes of verifying the total annual weight of cargo to or from vessels and/or barges, handled by the Operator across the docks at the Premises to or from vessels and/or barges.

ARTICLE XV MECHANICS' LIENS

If a Mechanic's Lien is filed against the Premises, for, or purporting to be for, labor or material alleged to have been furnished, or to be furnished to or for, the Operator, the Operator shall cause such Mechanic's Lien to be discharged within thirty (30) days, after written notice from the Authority, by bonding proceedings or otherwise. If the Operator shall fail to take such action as shall cause such Mechanic's Lien to be discharged within said thirty (30) day period, the Authority may, at its option, pay the amount of such Mechanic's Lien or may discharge the same by bonding proceedings and, in the event of such bonding proceedings, the Authority may acquire the lienor's claim. Any amount paid or expense incurred by the Authority, as in the preceding portion of this Article XV provided, or any expense incurred or sum of money paid by the Authority by reason of the failure of the Operator to comply with the foregoing provisions of this Article XV or in defending any such action, shall be paid to the Authority by the Operator. The foregoing shall not preclude Operator from contesting any such lien in good faith. In the event Operator elects to contest in good faith and by appropriate proceedings any such mechanic's, materialmen's or other such liens, such contest shall be timely instituted in appropriate proceedings and the Authority will cooperate fully with Operator, but at Operator's expense, in any such contest (except as to any such lien asserted by the Authority, in which event Operator shall have the right to contest such lien as if it were the owner of the Premises). If Operator fails to cause such liens to be discharged or bonded, or to contest the validity or amount thereof within the period aforesaid, then, subject to Section 3.4 herein, in addition to any other right or remedy of the Authority, the Authority may, but shall not be obligated to, discharge the same either by paying the amount claimed to be due or by procuring the discharge of such lien by deposit or by bonding. Any amount paid by the Authority shall be reimbursed by Operator to the Authority within thirty (30) days of receipt of an invoice on demand, and if not so reimbursed on demand may be treated as an Event of a Default pursuant to Section 16.1 herein.

ARTICLE XVI REMEDIES OF AUTHORITY ON DEFAULT

16.1 Events of Default. The following are, after the expiration of any applicable grace periods, events of default (an "Event of Default" or collectively "Events of Default"): (a) Operator fails to pay the charges under Section 3 within ten (10) days after said charges are due, (b) Operator

fails to pay to the Authority other amounts provided herein to be paid to the Authority within thirty (30) days after rendition of a statement, (c) Operator fails to maintain insurance coverage in the prescribed amounts, (d) Operator or the Authority default in the prompt and full performance of any of the covenants and agreements hereunder, and said default is not corrected within thirty (30) days after notice from the other party of said default (or if such default is of such a nature that it cannot be cured completely within such thirty (30) day period, if the defaulting party shall not have promptly commenced to cure the default within said thirty (30) day period and not have diligently prosecuted the curative work to completion), (e) the Premises is levied upon under execution or attached, (f) or any voluntary or involuntary petition or similar pleading under any Act of Congress relating to bankruptcy is filed by or against the Operator or the Authority, or any voluntary or involuntary proceedings in any court or tribunal is instituted by or against the Operator or the Authority to declare such party insolvent or unable to pay its debts, (g) the Operator or the Authority makes an assignment for the benefit of creditors, or a receiver is appointed for any of its property, (h) the Operator vacates or abandons the Premises in compliance with Section 5.3. If by reason of a Force Majeure event Operator is unable in whole or in part to carry out its obligations on its part herein contained, other than the obligations on the part of Operator to pay any sums payable by Operator hereunder and to carry insurances required by this Agreement, no Event of Default shall be deemed to have occurred, during the continuance of such inability. Operator shall, however, use commercially reasonable efforts to promptly remedy the cause or causes preventing Operator from carrying out its obligations under this Agreement. Notwithstanding the above, Operator shall not be required to settle strikes, lockouts or other industrial disturbances by acceding to the demands of the opposing party or parties when such course is, in the judgment of the Operator, unfavorable to Operator.

16.2 Remedies Upon Default. If any of the above Operator Events of Default occur, Authority may pursue either of the following alternative remedies:

A. Without any further notice or demand, Authority may take any action or actions permissible at law to insure performance by Operator of its covenants and obligations under this Agreement. If Operator abandons or vacates the Premises, Authority may enter upon and take possession in order to protect them from deterioration and continue to demand from Operator the monthly charges and other charges provided in this Agreement with the obligation on the Authority to use commercially reasonable efforts to retain a new Operator for the Premises. Moreover, if Authority elects to enter into a new Operator Agreement for the Premises, that action shall not be deemed an acceptance of Operator's surrender of them unless Authority expressly notifies Operator otherwise in writing pursuant to subsection B below. Operator shall pay Authority on demand any deficiency between the monthly charges and other charges provided in this Agreement that are actually collected by Authority. If there is any default described in Section 16.1, Authority may enter upon the Premises, by force if necessary, without being liable for prosecution or any claim for damages, and do whatever Operator is obligated to do under this Agreement. Operator shall reimburse Authority on demand for all expenses incurred by it in effecting compliance with Operator's obligations hereunder, and Authority shall not be liable for resulting damages to Operator.

B. Authority may terminate this Agreement by giving written notice to Operator. In such event, Operator shall immediately surrender the Premises to Authority. If Operator fails to do so, Authority may, without prejudice to any other remedy it may have for

possession or amounts it is owed, enter upon, and take possession of the Premises and expel or remove, by force if necessary, Operator and any other person who is occupying all or a portion of the Premises without being liable for prosecution or any claim for damages. In addition, Operator shall pay to Authority on demand all loss and damage suffered by it by reason of any termination effected under this subsection B. The loss or damaged shall be determined by either of the following alternative measures of damages:

- (i) Until Authority is able, through reasonable efforts the nature of which shall be at its sole discretion, to obtain another operator for the Premises, Operator shall pay to it, on or before the first day of each calendar month during the term, the monthly charges and other charges specified in this Agreement. After Authority obtains another operation for the Premises, Operator shall pay to it, on the 10th day of each calendar month, the difference between the monthly and other charges for the preceding calendar month and the amount actually collected by Authority for that month. If Authority is required to bring suit in order to collect a deficiency, it may allow the deficiency to accumulate and bring an action on several or all of the accrued deficiencies at one time. Such suit shall not prejudice in any way Authority's right to bring a similar action, for subsequent deficiencies. If the amount collected by Authority from subsequent Operators for a calendar month exceeds the monthly charges and other charges, the excess shall be credited to Operator in reduction of its liability for any calendar month for which the amount collected is less than the monthly charges and other charges. However, Operator's right to the excess is limited to the above described credit.
- (ii) Authority may demand a final settlement at any time. Upon such demand, Operator shall pay the difference between the monthly charges and other charges provided in this Agreement for the remainder of the term and the reasonable charges value of the Premises for that period. The difference shall be discounted to present value at 6 percent per annum.

Authority's election to exercise the remedy prescribed above, in subsection A shall in no way prejudice its right at any later time to cancel the election in favor of the remedy provided in subsection B, if at the time of cancellation Operator is still in default. Similarly, Authority's election to compute damages in the manner prescribed above by subsection B (I) shall in no way prejudice its right at any later time to demand a final settlement in accordance with subsection B (ii). Pursuit of any of the above remedies shall not preclude pursuit of any other remedy provided elsewhere in this Agreement or by law. Authority's forbearance to enforce any remedy provided herein upon an Event of Default shall not be deemed to constitute a waiver of the default.

If any of the above Authority Events of Default occur, Operator may pursue either of the following alternative remedies:

A. Operator or its designee may take such actions as it deems necessary to cure the Authority's default, and offset against any charges then or thereafter due and payable by Operator to the Authority until Operator is made whole for all of Operator's actually incurred costs and expenses, including reasonable attorney's fees. If any, not promptly reimbursed to Operator by the Authority and for any actual damages suffered by Operator for the Authority's default; and/or

B. Operator may take whatever other action at law or in equity as may appear reasonably necessary to enforce performance and observance of any obligation, agreement or covenant of the Authority under this Agreement, provided Operator shall not be able to terminate this Agreement.

16.3 Authority Expenses. In addition to the payments required by subsections A and B of Section 16.1. Operator shall compensate Authority for the following: all expenses incurred by Authority in repossession (including any increase in insurance premiums caused by the vacancy of the Premises), and in obtaining another operator (including repairs, remodeling, replacements and advertisements); all concessions granted to a new operator; all expenses incurred by Authority as a direct or indirect result of Operator's default; and a reasonable allowance for Authority's administrative efforts, salaries, and overhead attributable directly or indirectly to Operator's default and Authority's pursuing the rights and remedies provided under this Agreement and applicable law.

16.4 Injunction; Cumulative Remedies. Authority may restrain or enjoin any breach or threatened breach of Operator's covenants, duties, and obligations under this Agreement without having to prove the inadequacy of any legal remedy or irreparable harm. Authority's remedies under this Agreement shall be deemed cumulative and not exclusive.

16.5 Attorney's Fees. If Authority is required, on account of a breach or default by Operator in any obligation under this Agreement or as a result of litigation brought by or on behalf of Operator, to hire an attorney to present, enforce, or defend Authority, Operator shall pay all reasonable attorney's fees incurred by Authority in that connection. Notwithstanding the preceding sentence, there is no obligation on the Operator to pay attorney's fees and disbursements incurred by the Authority in defending an action instituted by the Operator where the Operator is the prevailing party and if the Operator is the prevailing party for only part of the action then the foregoing exemption will only apply to that part of the action for which the Operator was the prevailing party.

ARTICLE XVII INDEMNITY

The Operator hereby assumes entire responsibility and liability for and all damage or injury of any kind or nature whatever (including death resulting therefrom) to all persons, whether employees of the Operator or otherwise, and to all property occurring in whole or in part on the Premises caused by, resulting from or arising out of or occurring in connection with the Operator's occupancy of the Premises or any activity of the Operator related thereto; and, if any claims, demands or causes of action for such damage or injury (including death resulting therefrom) be made or asserted, the Operator agrees to indemnify and save harmless the Authority, its agents,

servants, employees other Operators, invitees or licensees, from and against any and all such losses, costs, expenses, liabilities, damages or injuries, including legal fees and disbursements, that the Authority, its agents, servants or employees may directly or indirectly sustain, suffer or incur as a result thereof and the Operator agrees to and does hereby assume, on behalf of the Authority, its agents, servants, employees, other Operators, invitees or licensees the defense of any action at law or in equity which may be brought against the Authority, its agents, servants, employees, upon demand, the amount of any judgment that may be entered against the Authority, its agents, servants or employees in any such action. The foregoing obligation of the Operator to indemnify and save harmless the Authority, its agents, servants, employees, other Operators, invitees or licensees shall apply whether or not such losses, claims, demands, damages, causes of action or expenses are due or claimed to be due to the negligence or other acts or omissions of the Operator, any contractors, subcontractors, employees, agents, invitees or licensees of the Operator, and such obligation of the Operator shall not be limited by any allegation made or asserted in support of such claims by any such claimant of active or passive negligence, participation in the wrong or breach of any statutory duty or obligation by or on the part of the Authority, but the aforesaid obligations shall not extend or apply to any claim, loss, cost, expense, liability, damage or injury caused by or arising by reason of the active or passive negligence, wrongdoing or breach of any statutory duty or obligation under this Agreement or otherwise by or on the part of the Authority, its agents, servants, employees, other Operators, invitees or licensees, including but not limited to CPR, in which event, the Authority shall be responsible for any such claim, loss, cost, expense, liability, damage or injury including legal fees and disbursements, caused by or arising out of the active or passive negligence, wrongdoing, or breach of any statutory duty or obligation under this Agreement or otherwise by or on the part of the Authority, its agents, servants, or employees; provided, however, that in all events the Authority's and Operator's obligations hereunder shall be subject to the provisions of Chapter 2744, Political Subdivision Tort Liability, of the Ohio Revised Code.

In addition, the Operator reiterates the indemnification provided for in Section 5.4 of this Agreement.

In any and all claims, demands or causes of action against the Authority or any of its agents, servants or employees by any employee of the Operator, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, the indemnification obligation under this Article XVII shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for the Operator under Worker's Compensation Acts, disability benefit acts or other employee benefit acts; provided, however, that said indemnification obligation shall not confer or be deemed to confer upon any such claimant any rights of recovery in addition to those or other than as otherwise available to such claimant at law or in equity.

ARTICLE XVIII UTILITIES

The Operator agrees, during the term hereof, to pay all charges for electricity, water, gas, sewer, heat, telephone and other utility services used or consumed on the Premises. The Authority requires that the perimeter lights of Warehouse A be turned on from dusk to dawn every day.

ARTICLE XIX

EMINENT DOMAIN

19.1 Complete Taking. If the whole of any of the Warehouse A Facility, Warehouse 22 Facility, Warehouse 24 Facility, Warehouse 26 Facility or Maintenance Shed Facility shall be taken in appropriation proceedings or by any right of Eminent Domain (including a conveyance in lieu thereof), then this Agreement with respect to the specific Premises taken shall terminate from the time possession thereof is required for public use and, from that date on, the parties hereto shall be released from further obligations thereafter accruing hereunder for that or those Premises.

19.2 Partial Taking. If less than fifty percent (50%) of the floor space of any of the Warehouse A Facility, Warehouse 22 Facility, Warehouse 24 Facility, Warehouse 26 Facility or, Maintenance Shed Facility respectively shall be so taken, the Agreement term shall cease only with respect to the part so taken as of the date possession thereof is required for public use, and the Operator shall pay charges up to that date, with appropriate refund by the Authority of such charges as may have been paid in advance for the portion so taken for a period subsequent to the date of the taking. If fifty percent (50%) or more of the floor space of any of the Warehouse A Facility, Warehouse 22 Facility, Warehouse 24 Facility, Warehouse 26 Facility or Maintenance Shed Facility shall be so taken, then the term of this Agreement shall cease only on parts so taken from the date possession thereof is required for public use, and the Operator shall pay charges up to that date, with an appropriate refund by the Authority of such charges as may have been paid in advance for a period subsequent to the date of taking, and either party shall have the right to terminate this Agreement upon notice, in writing to the other party, within thirty (30) days after such taking of possession for that portion of the Premises so taken.

19.3 Adjustment of Charge. If following a taking of a portion of the Premises by Eminent Domain this Agreement is not terminated under the provisions of this Section 19, there shall be an equitable adjustment of the fixed charges based upon the portion and part of the Premises taken.

19.4 Allocation of Award. The Operator agrees that the Authority shall be entitled to collect from any condemning authority the entire award that may be made in any condemnation or appropriation proceedings, without deduction therefrom from any estate or rights vested in or owned by the Operator, and the Operator shall not have claim against the Authority by reason of any condemnation or taking of the whole or part of the Premises, nor any claim to the amount on any portion thereof which may be awarded as damages or paid as the result of any condemnation or taking; provided, however, that the Authority shall not be entitled to any award made to the Operator for loss of business, depreciation to and cost of removal of stock, equipment and trade fixtures and moving expenses.

ARTICLE XX NO WAIVER

20.1 Payment Not a Waiver. No receipt of money by the Authority from the Operator with knowledge of the breach of any covenants of this Agreement, or after the termination thereof, or after the service of any notice, or after the commencement of any suit, or after final judgment for possession of the Premises, shall be deemed a waiver of such breach, nor shall it reinstate, continue or extend the term of this Agreement or affect any such notice, demand or suit.

20.2 Payment of Lesser Amount. No payment by the Operator or receipt by the Authority of a lesser amount than the monthly charges herein stipulated shall be deemed to be other than on account of the earliest stipulated charges, nor shall any endorsement or statement on any check or any letter accompanying any check or payment as charges be deemed an accord and satisfaction, and the Authority may accept such check or payment without prejudice to the Authority's right to recover the balance of such charges or pursue any other remedy in this Agreement provided.

20.3 Delay Not a Waiver. No delay or failure on the part of the Authority or the Operator in exercising or enforcing any right, power or privilege hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power or privilege preclude any other, or further exercise thereof, or the exercise of any other right, power or privilege.

20.4 Waivers in Writing. No act done or thing said by the Authority or the Authority's agents or employees shall constitute a cancellation, termination or modification of this Agreement, or a waiver of any covenant, agreement or condition hereof, nor relieve the Operator from the Operator's obligation to pay the charges reserved or other charges to be paid hereunder. Any waiver or release by the Authority and any cancellation, termination or modification of this Agreement must be in writing, signed by the Authority.

ARTICLE XXI NOTICES

Whenever it shall be necessary or desirable for the Authority to serve any notice or demand upon the Operator, such notice or demand shall be deemed sufficiently given or made hereunder if it is in writing and delivered to the Operator by hand or sent by Certified or Registered mail, postage prepaid, addressed to the Operator at:

Logistec USA Inc.
600 de la Gauchetiere Street West
14th Floor
Montreal, QC H3B 4L2
Canada
Attention: Rodney Corrigan
Fax No.: 514-844-9650

With a copy to:

Logistec Marine Services ULC
600 de la Gauchetiere Street West
14th Floor
Montreal, QC H3B 4L2
Canada
Attention: Ingrid Stefancic
Fax No.: 514-844-9650

_____, and the time of the giving or making of such notice or demand shall be deemed to be the time when the same is so delivered

to the Operator, or three (3) days after mailing. Any notice by the Operator to the Authority must be sent by Registered or Certified mail, postage prepaid, and addressed to the Authority at the address where the last previous charges hereunder was required to be paid. Whenever in this Agreement, in connection with the breach or performance of any of the covenants and agreements of the Operator, no period of time or notice is required by the terms hereof, no notice shall be required as a prerequisite to the exercise of any right or remedy of the Authority.

ARTICLE XXII RELATIONSHIP OF PARTIES

Nothing contained in this Agreement shall be deemed or construed by the parties hereto or by third (3rd) parties to create any relationship between the Authority and the Operator other than the relationship of Independent Contractor.

ARTICLE XXIII RECORDING

This Agreement shall not be recorded.

ARTICLE XXIV END OF TERM

Upon the expiration or other termination of the term of this Agreement, the Operator shall quit and surrender to the Authority the Premises, together with all alterations, installations, additions and improvements, whether installed by the Authority or the Operator, broom clean, and in as good condition and repair as the same were at the commencement of the term or were thereafter put by the Authority or the Operator, subject to ordinary wear and tear, and damage or destruction by fire or other casualty covered by standard fire and extended coverage insurance failing which the Authority may restore the Premises to such condition, and the Operator shall pay the cost thereof to the Authority, upon demand, plus interest from demand at twelve percent (12%) per annum until paid.

ARTICLE XXV HOLDING OVER

Should the Operator remain in possession of the Premises after the date of the expiration of the term of this Agreement, without the consent of the Authority, then, unless a new Agreement in writing, shall have been entered into between the parties hereto, the Authority shall have the option to treat the Operator as a trespasser or as an Operator from month to month at a monthly charges equal to the amount of the last monthly fixed charges payable hereunder, or market charges, and otherwise subject to all of the terms and conditions of this Agreement.

ARTICLE XXVI
MISCELLANEOUS

26.1 Brokerage. The Operator and the Authority represent and warrant to one another that no broker or finder was involved in procuring or consummating this Agreement. The party breaching or alleged to have breached this representation and warranty shall indemnify the other from all loss, cost and expense relating to any claim for commission.

26.2 [Intentionally deleted]

26.3 Applicable Law. The laws of the State of Ohio shall govern the validity, performance and enforcement of this Agreement. The invalidity or unenforceability of any provision of this Agreement shall not affect or impair any other provision.

26.4 Headings. The headings of paragraphs are inserted only as a matter of convenience and for reference and in no way define, limit or describe the scope or intent of this Agreement, nor in any way affect this Agreement.

26.5 Assigns. The terms, covenants and conditions contained in this Agreement shall bind and inure to the benefit of the Authority and the Operator and the respective successors and assigns, subject, however, to the provisions of Section 13 hereof respecting assignment of this Agreement.

26.6 Venue and Jurisdiction. Any litigation brought between the parties shall be brought in the Cuyahoga County Court of Common Pleas.

26.7 Waiver of Jury. Both parties hereto waive any right to a jury in any litigation between them and all issues of fact and of law shall be tried by the judge in a bench trial.

26.8 Survival. The provisions of this Agreement that warrant surviving termination or expiration of this Agreement to address the resolution of any outstanding issues shall be deemed to survive the termination of this Agreement.

26.9 Entire Agreement. This Agreement contains the entire Agreement between the parties hereto, and shall not be modified in any manner except by an instrument in writing, executed by both of said parties or their respective successors in interest.

26.10 Counterparts. This Agreement may be executed in one or more counterparts, and all of these counterparts shall for all purposes constitute one agreement, binding on the parties, notwithstanding that all parties are not signatory to the same counterpart and a facsimile or a portable document format (PDF) of an originally executed counterpart of this Agreement shall be deemed, for all purposes, to be an original of this Agreement as shall any counterpart which is a facsimile or PDF of an originally executed document and which has been originally executed by another party hereto.

26.11 The Authority and the Operator agree that the piece of land identified in the attached Annex as shown on **Exhibit "A-6"** attached hereto and made a part hereof (the "Specific Premises") could be excluded from the definition of Premises in this Agreement depending on

business requirements. The "Specific Premises" would be annexed and deemed to be part of the CBT operating agreement. Both parties agree to review financial considerations and business requirements annually.

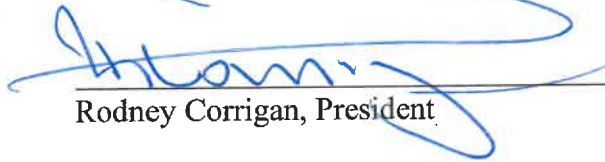
IN WITNESS WHEREOF, the CLEVELAND-CUYAHOGA COUNTY PORT AUTHORITY and LOGISTEC USA INC. through their respective duly authorized officers, have caused triplicate counterparts of this Agreement to be executed as of the day, month and year first above written.

CLEVELAND-CUYAHOGA COUNTY PORT
AUTHORITY



William D. Friedman, President & CEO

LOGISTEC USA INC.



Rodney Corrigan, President

STATE OF OHIO)
) SS:
COUNTY OF CUYAHOGA)

Before me, a Notary Public in and for said County and State, personally appeared William D. Friedman, the President & CEO of the Cleveland-Cuyahoga County Port Authority, being thereunto duly authorized and that the same is his free act and deed individually and as such officer and the free act and deed of said Port Authority.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal this 12th
day of December, 2024.



NOTARY PUBLIC



SCOTT D. SIMPKINS
Attorney at Law
Notary Public, State of Ohio
My commission has
no expiration date.
Section 147.03 O.R.C.

STATE OF Ohio)
) SS:
COUNTY OF Cuyahoga)

Before me, a Commissioner for Oaths in and for said City and Province personally appeared Rodney Corrigan, the President of Logistec USA Inc., who acknowledged that he did sign the same for and on behalf of said Corporation, being thereunto duly authorized and that the same is his free act and deed individually and as such officer and the free act and deed of said Corporation.

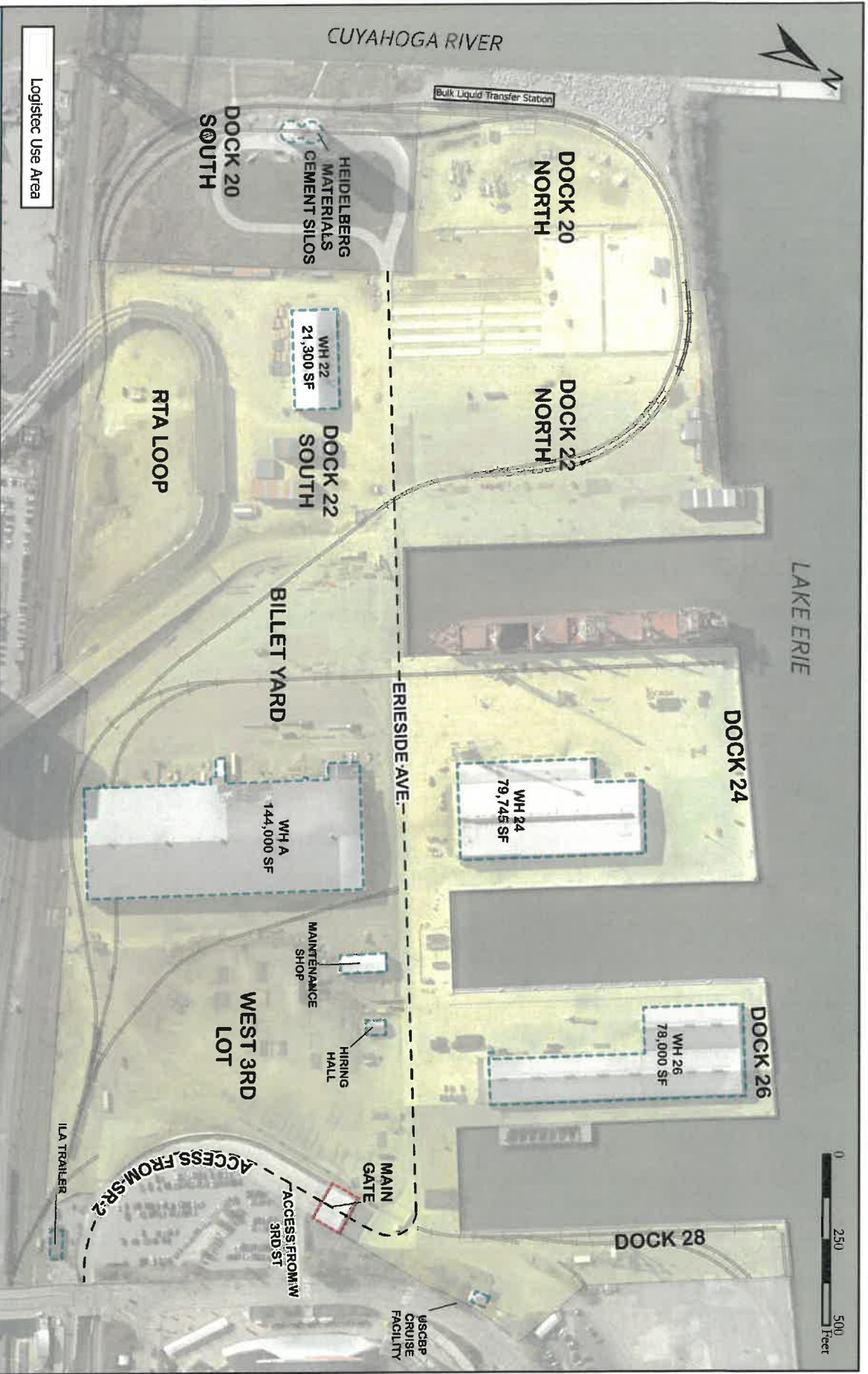
IN WITNESS WHEREOF, I have hereunto set my hand and official seal this 12th
day of December, 2024.



NOTARY PUBLIC



SCOTT D. SIMPKINS
Attorney at Law
Notary Public, State of Ohio
My commission has
no expiration date.
Section 147.03 O.R.C.



Logistec Use Area



General Cargo Terminal

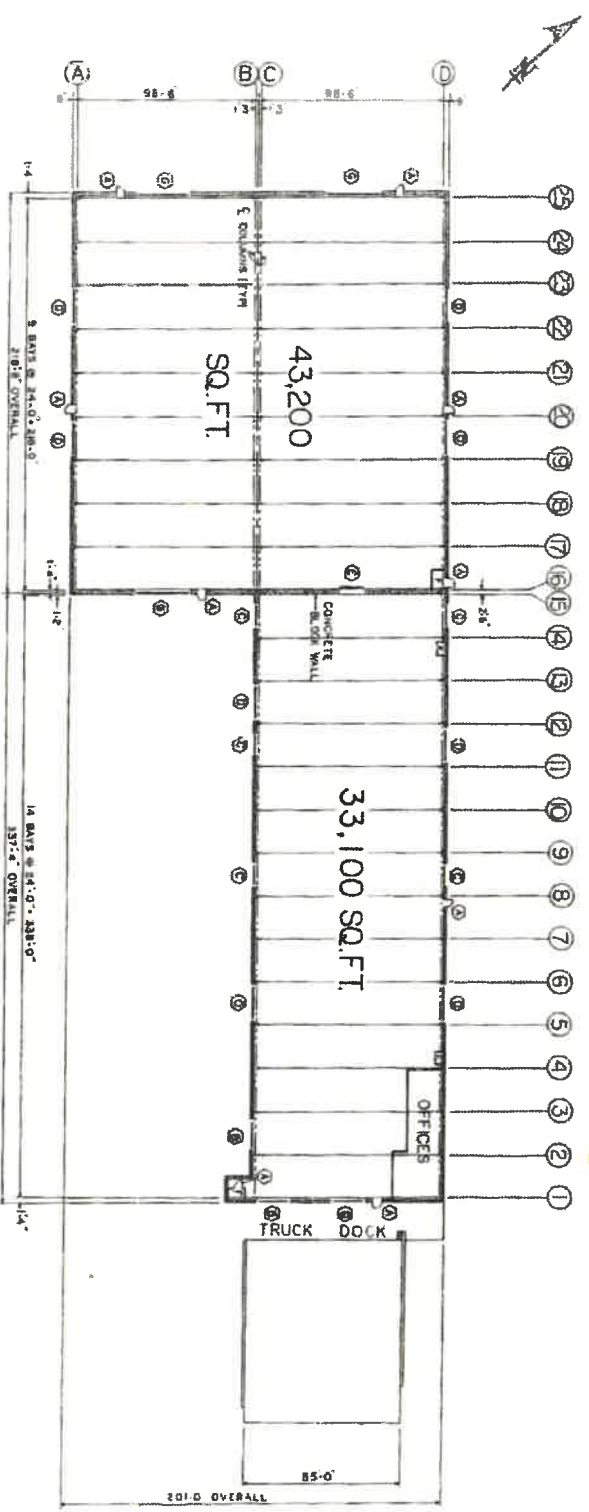
Exhibit A

Esri, CGIAR, USGS, Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/
NASA, USGS, EPA, NPS, USDA, USFWS

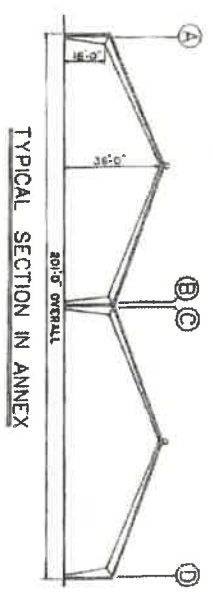
12/3/2024

PORT CLEVELAND
1100 W. 9th St., Suite 300
Cleveland, OH 44113

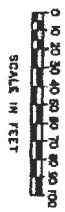
EXHIBIT A-1



PLAN VIEW
SCALE 1"=50'-0"



TYPICAL SECTION IN ANNEX



SCALE IN FEET

DOOR SCHEDULE

- ① 3'-0" x 7'-0"
- ② 17'-4" x 14'-0"
- ③ 12'-0" x 14'-0"
- ④ 22'-0" x 18'-0"
- ⑤ 19'-0" x 15'-0"
- ⑥ 29'-4" x 20'-0"

NOTE: ALL DOORS EXCEPT TYPE ⑥ DOORS ARE OVERHEAD ROLLING STEEL DOORS
* - RISER FOR SPRINKLER SYSTEM OR OUTSIDE WALL TERMINALS

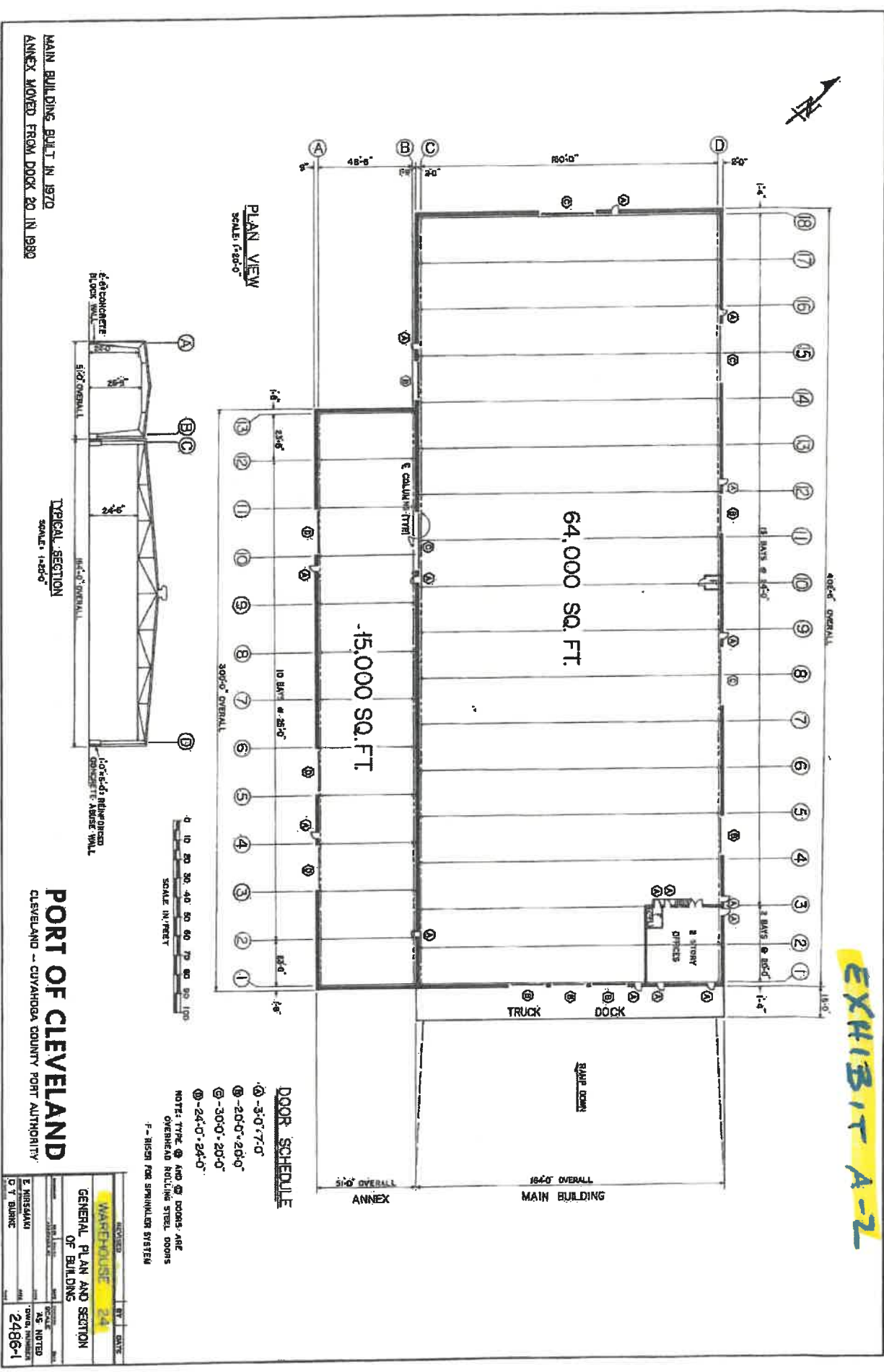
MAIN BUILDING BUILT IN 1959
ANNEX BUILT IN 1973 (EDA PROJECT NO. DE-1-0098)

PORT OF CLEVELAND CLEVELAND - CUYAHOGA COUNTY PORT AUTHORITY

PROJECT NO. 14-013		DATE 11/17/78
DESIGNED BY		BY
CHECKED BY		DATE
SCALE		AS NOTED
DRAWN BY		DATE
E. HISSAKI		2686-1

WAREHOUSE 26
GENERAL PLAN AND SECTION
OF BUILDING

EXHIBIT A-2



MAIN BUILDING BUILT IN 1970
ANNEX MOVED FROM DOCK 20 IN 1980

PORT OF CLEVELAND
CLEVELAND - CUYAHOGA COUNTY PORT AUTHORITY

WAREHOUSE 24	
GENERAL PLAN AND SECTION OF BUILDING	
DESIGNED BY	DATE
DRAWN BY	DATE
CHECKED BY	DATE
SCALE	AS NOTED
PROJECT NUMBER	2486-1

Cleveland

Harbor

EXHIBIT A-3

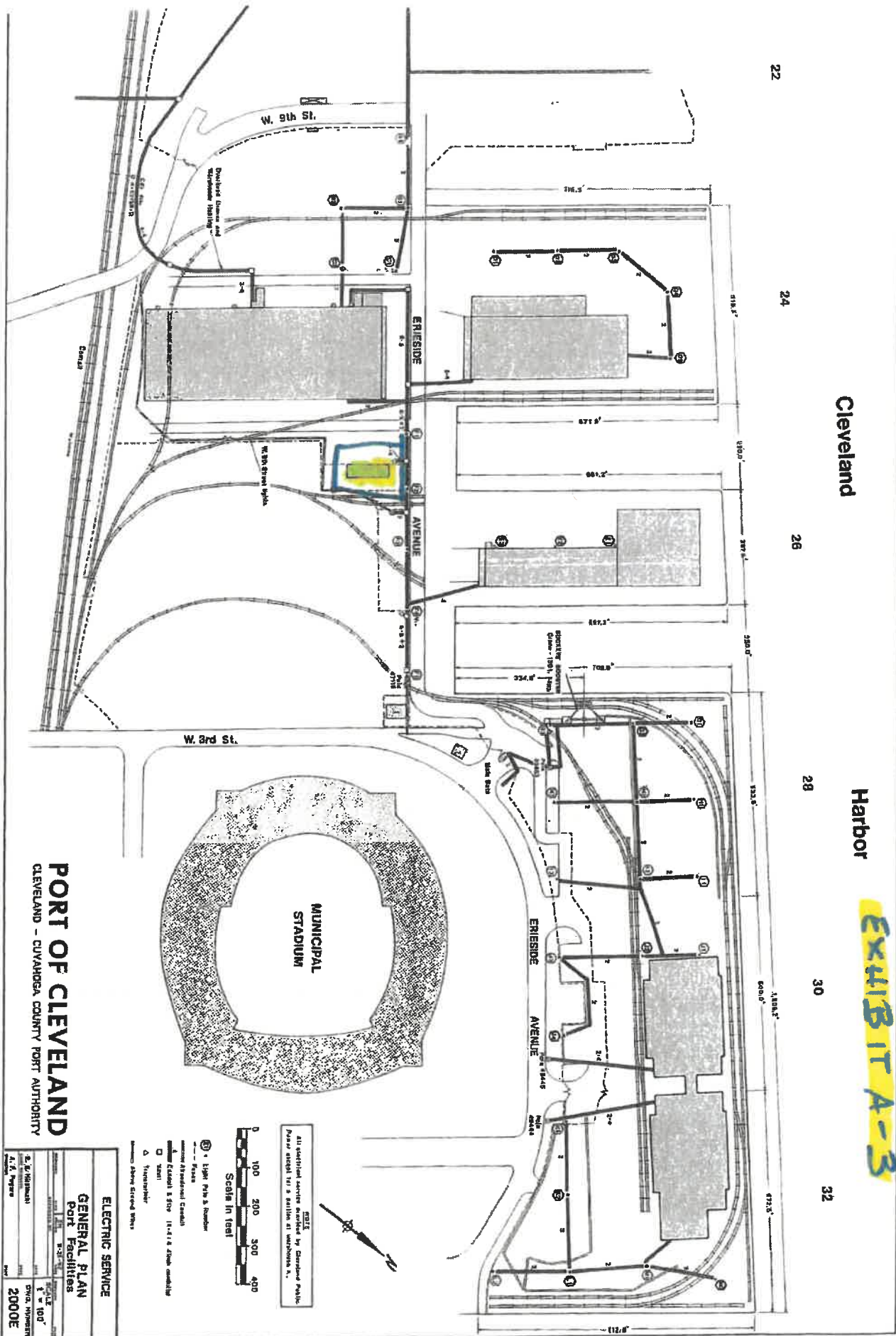
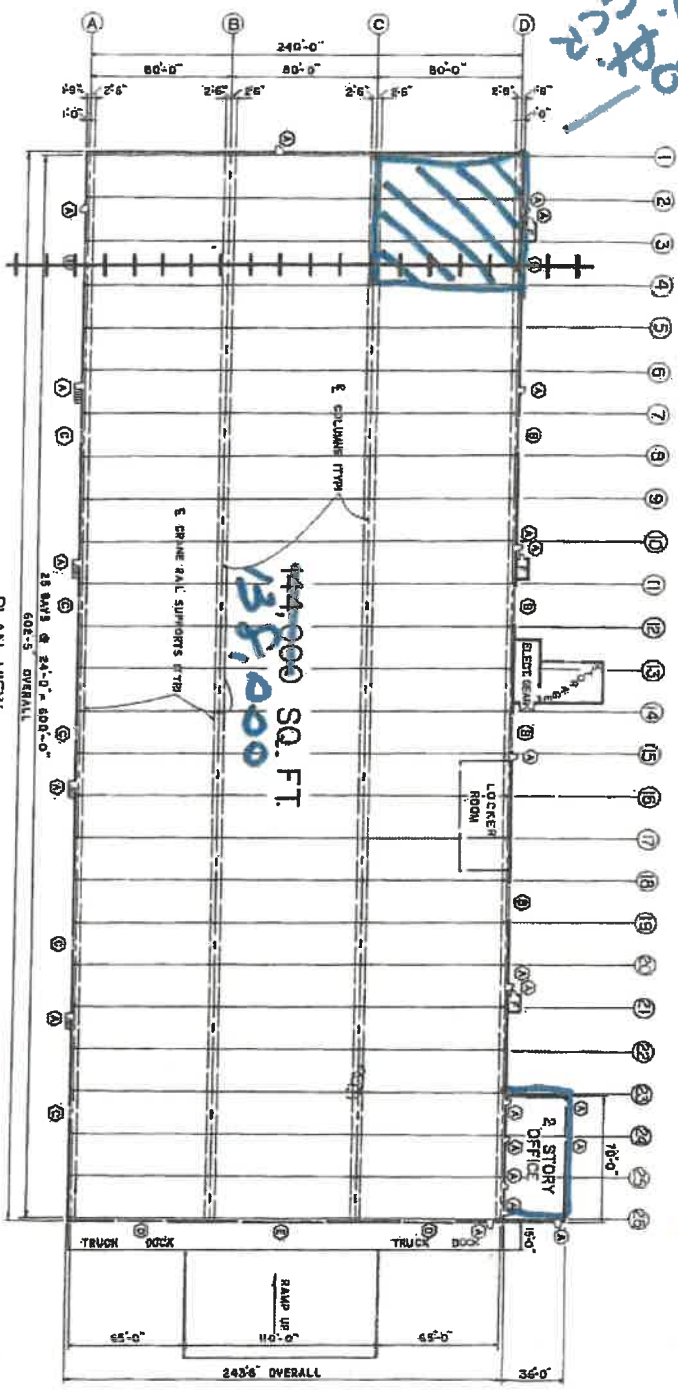
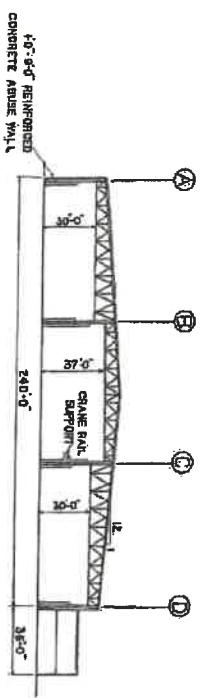


EXHIBIT A-4

6,000
59.44
CCR



PLAN VIEW
SCALE: 1/32" = 1'-0"



SECTION AT 25
SCALE: 1/32" = 1'-0"



DOOR SCHEDULE

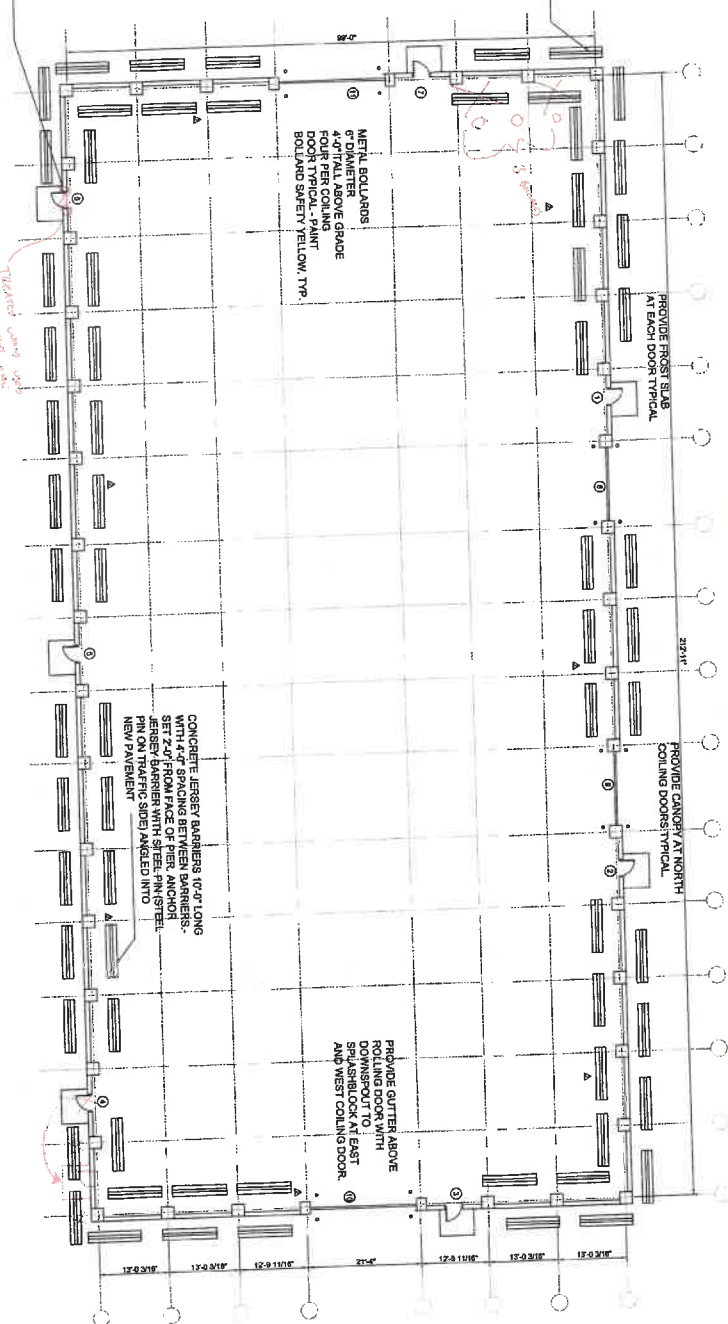
- ① - 5'-0" x 7'-0"
- ② - 20'-0" x 18'-0"
- ③ - 8'-0" x 8'-0" (truck door)
- ④ - 30'-0" x 22'-0"
- ⑤ - 50'-0" x 22'-0"

NOTE: ALL DOORS EXCEPT TYPE ③ DOORS ARE OVERHEAD ROLLING STEEL DOORS.
F - RISES FOR SPRINKLER STRUTS.

PORT OF CLEVELAND
CLEVELAND - CUYAHOGA COUNTY PORT AUTHORITY

REVISION	BY	DATE
WAREHOUSE "A"		
GENERAL PLAN AND SECTION OF BUILDING		
SCALE: 1/32" = 1'-0"		
E. HIRSHMAN	AS NOTED	
C. T. BURKE	DATE REVISION	
2586-1		

PROVIDE DRIP LEDGES
ABOVE MAN DOORS -
TYPICAL ALL
LOCATIONS _____



1. CONTRACTOR SHALL SUPPLY A MEMBRANE ROOF RAISED 18" ABOVE FINISHED FLOOR. STRUCTURE DESIGNED AND PREFABRICATED AND INSTALLED BY ONE CONTRACTOR. MATERIAL SUBMIT IN WRITING THAT MANUFACTURER IS APPROVED.

11. ALL STEEL SHALL BE GALVANIZED POST FABRICATION AND PRIOR TO SHIPMENT (ASTM A152) AND TOLICUED UP AS PER DESIGN AND DESIGNED BY THE PREFABRICATOR TO MEET CBC AND CITY OF OAKLAND CODES AND ORDINANCES.
10. BUILDING STRUCTURE DESIGN LOADS SHALL BE PROVIDED BY THE CONTRACT ARCHITECT/ENGINEER* AND ARE INCLUDED IN THIS DESCRIPTION OF THE COMPLETE AND COMPLIANCE WITH STATE AND LOCAL DESCRIBED HEREIN. DESIGN LOADS SHALL BE PROVIDED BY THE CONTRACT ARCHITECT/ENGINEER* AND ARE INCLUDED IN THIS DESCRIPTION OF THE COMPLETE AND COMPLIANCE WITH STATE AND LOCAL DESCRIBED HEREIN. FIRE CODE AND ZONING LAWS, CODES AND ORDINANCES.
9. THE CONTRACTOR, PRIOR TO THE START OF THE WORK, SHALL VERIFY/CONFIRM, WITH THE LOCAL BUILDING OFFICIAL AND FIRE OFFICIAL, THAT THE PROJECT, THAT CODES AND ORDINANCES SHALL BE DESIGNED AND COMPLETED IN GOOD ORDER AND WITH EXPECTED COMPLIANCE WITH THE APPLICABLE BUILDING CODES.
8. SITE DESIGN LANDING AND SUBSURFACE WORK, INCLUDING SUBSURFACE INVESTIGATION REPORT AND FOUNDATION AND FOUNDATION SITE DESIGN CRITERIA SHALL BE PROVIDED BY THE GEOGRAPHICAL ENGINEER. ^A
7. THE FABRIC BUILDING CONTRACTOR SHALL DESIGN AND BUILD THE BUILDING COMPLETE THROUGH OCCUPANCY BY THE OWNER. FABRIC BUILDING CONTRACTOR SHALL PROVIDE REFLECTION AND LOAD CRITERIA FOR FOUNDATION DESIGN. ^A
6. ALL MEMBRANE, PIECES AND PARTS, SHALL BE COMPOSED OF MATERIALS MEETING THE FAME/FIRE PROPAGATION PERFORMANCE CRITERIA OF ONE HOUR FOR THE FIBRO SPECIFIED BY THE OWNER. PERFORMANCE CRITERIA ARE EFFECTIVE FOR THE FIBRO SPECIFIED BY THE OWNER.
5. THE CONTRACTOR SHALL PROVIDE TO THE BUILDING OFFICIAL, A CERTIFICATE CERTIFYING THAT THE MEMBRANE WALLS AND ROOF AND APPURTENANCES TO BUILDING FIBRO MEETING THE REQUIREMENTS OF THE CERTIFICATE OF THE BUILDING OFFICIAL, AS PER THE OHIO FIRE CODE AND OHIO BUILDING CODE.
4. PREFABRICATED MEMBRANE SYSTEM BASIS OF DESIGN/DESIGN BUILDER SHALL BE THE "RUSH-CO", SPRINGFIELD, ID.
3. NOT USED.
2. NOT USED.
1. NOT USED.

1. CONTRACTOR SHALL PROVIDE PORTABLE FIRE EXTINGUISHERS AS REQUIRED PER SECTION 806 OF THE FIRE CODE. SIGNAGE AND MOUNTING BRACKETS SHALL BE PROVIDED BY CONTRACTOR.

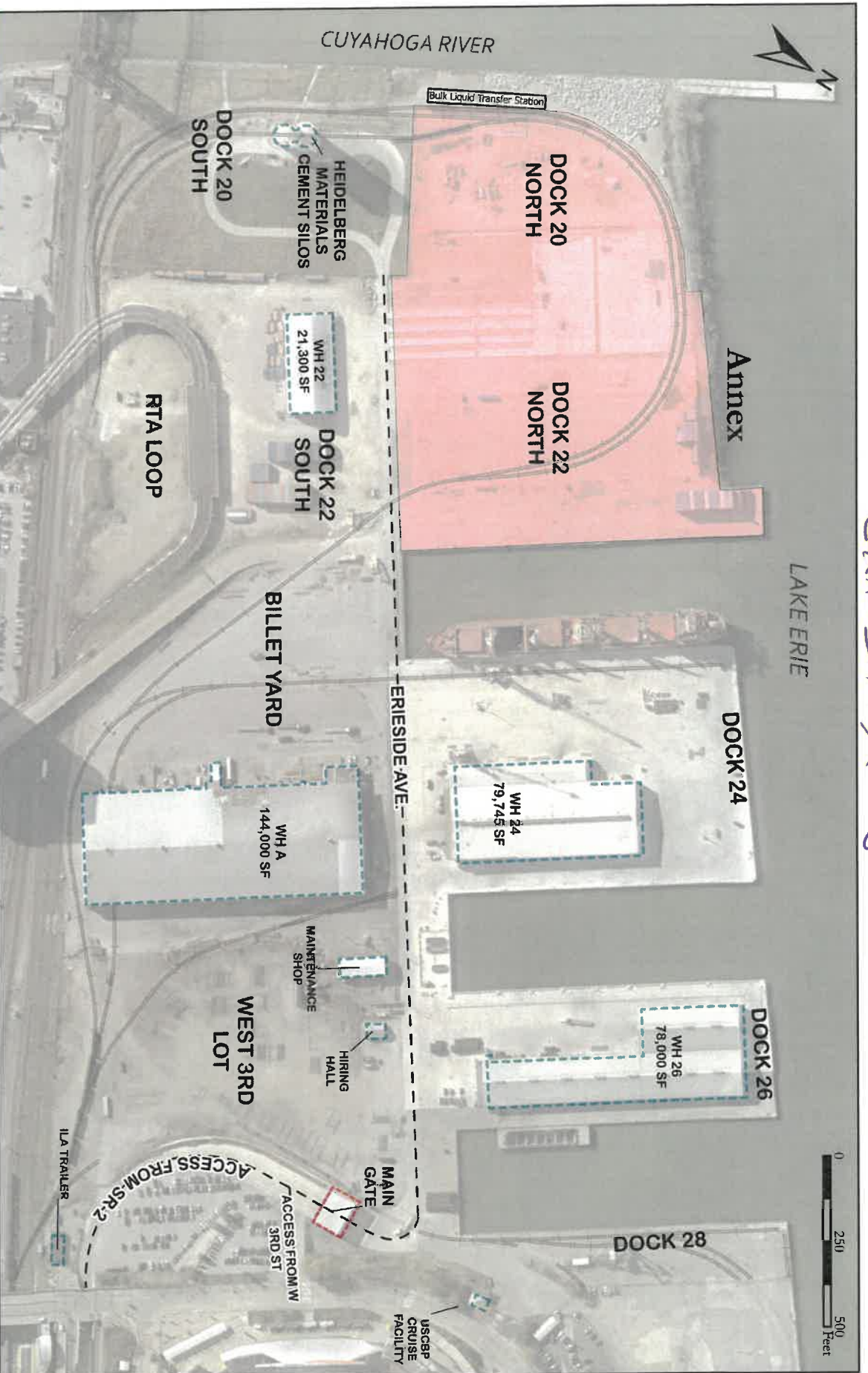
2. EXITS MUST BE ABLE TO BE REACHED FROM ALL POINTS WITHIN A BUILDING WITHOUT TRAVEL OF MORE THAN 100'.
3. ALL STORAGE SHALL BE NO CLOSER THAN MINIMUM 3'-0" TO ALL FABRIC MEMBRANE ON WALLS AND ROOFS.
4. STRUCTURE SHALL COMPLY WITH CHAPTER 31 TENTS AND OTHER MEMBRANE STRUCTURES OF THE INTERNATIONAL FIRE CODE.

TRUE NORTH PROJECT NORTH

DOCK 22 SOUTH MEMBRANE FABRIC STRUCTURE

1100 WEST NINTH STREET, SUITE 300 CLEVELAND, OHIO 44113

EXHA BITA-6



General Cargo Terminal

Esri, CGIAR, USGS, Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/
NASA, USGS, EPA, NPS, USDA, USFWS

12/10/2024

PORT
CLEVELAND

1100 W. 9th St., Suite 300
Cleveland, OH 44113



Cleveland

Harbor

EXHIBIT-B1

22

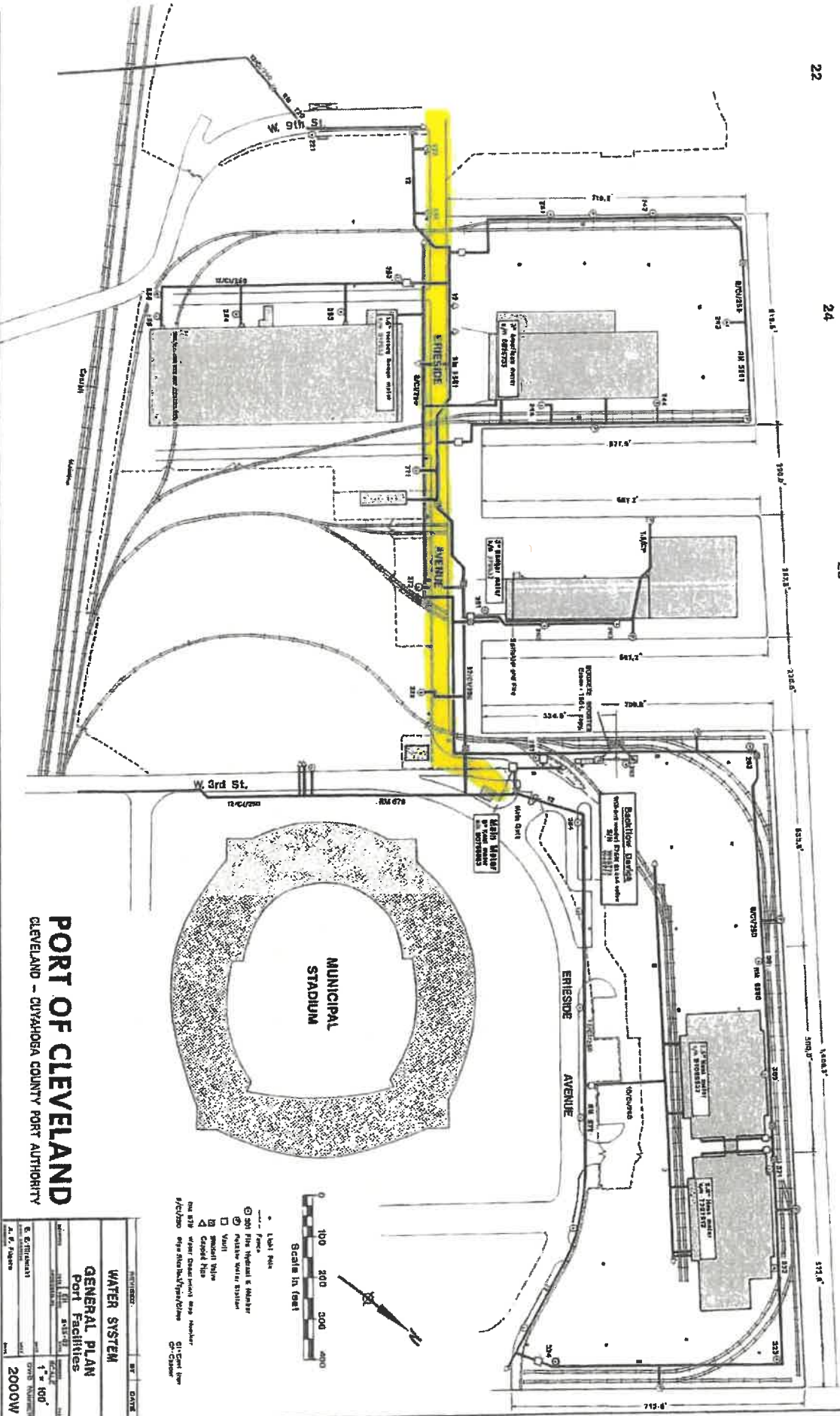
24

26

28

30

32



PORT OF CLEVELAND

CLEVELAND - CUYAHOGA COUNTY PORT AUTHORITY

WATER SYSTEM		BY	DATE
GENERAL PLAN			
Port Facilities			
DESIGNED BY	DATE		
CHECKED BY	DATE		
APPROVED BY	DATE		
SCALE	1" = 100'		
PROJECT NO.	2000W		
DRAWN BY			
CHECKED BY			
APPROVED BY			

EXHIBIT C

MASTER FIXED CHARGES, EQUIPMENT RENTAL AND TONNAGE ASSESSMENT SCHEDULE

WHEREAS the CLEVELAND-CUYAHOGA COUNTY PORT AUTHORITY, 1100 West 9111 Street, Suite 300, Cleveland, Ohio 44113, a body corporate and politic duly organized and existing under the laws of the State of Ohio (hereinafter referred to as the "Authority"), and LOGISTEC USA INC., a Delaware corporation, with a place of business at 775 Erieside Ave., Cleveland, OH 44114 (hereinafter referred to as "Operator"), have entered into a certain Operator Agreement for Warehouse A, Warehouse 26, Warehouse 24, the Maintenance Shop and Warehouse 22 (the "Agreement"), which is dated December 12, 2024, 20D98 for the purposes of stevedoring, handling and storage operations at the Authority's Docks.

WHEREAS, the Agreement, in Article III provides that the Operator shall pay the Authority certain Fixed Charges, Equipment Rental and Tonnage Assessments according to this Master Fixed Charges, Equipment Rental and Tonnage Assessment Schedule (the "Schedule").

WHEREAS, it is the intention of the Authority and the Operator that this Schedule shall constitute the master agreement for all charges and tonnage assessment payments pursuant to the Agreement and the sole agreement between the parties covering the payment of the fixed charges and tonnage assessment pursuant to the Agreement.

THEREFORE, THE PARTIES AGREE as follows:

1. The preamble shall be a part of this Schedule.

2.1a. Fixed Charges: During the term of the Agreement, the Operator agrees to pay to the Authority the following, as a fixed charge, pursuant to the Agreement for the Premises, as this term is defined in the Agreement, an annual fixed charge in the amount of Six Hundred Fifty Thousand and 00/100 Dollars (\$650,000), payable in monthly installments of Fifty-Four Thousand One Hundred Sixty-Six and 67/100 Dollars (\$54,166.67):

All monthly portions of the fixed charge, as described above, are payable in advance without notice, on or before the first (1st) day of each calendar month commencing on April 1, 2025.

In subsequent years, if the Agreement is extended per Article II of the Agreement, the annual charge shall be subject to a yearly increase equivalent to CPI starting in the third renewal term, as of April 1, 2028.

Such payments will be in equal monthly installments commencing on April 1 and ending on March 31 of the following year.

- 2.1b. Volume Sharing. In addition to the annual fixed charges described in 2.1a., the Operator shall pay to the Authority a volume sharing fee (the "Fee") for each ton of cargo, to or from vessels and/or barges, handled by the Operator across the docks at the Authority, which Fee shall be in addition to and separate from the standard wharfage fees assessed in accordance with the Authority's port tariff. This Fee shall be as follows:

\$1.20 per metric ton on the first 0 - 200,000 metric tons;

\$0.95 per metric ton on metric tons between 200,001 - 300,000;

\$0.45 per metric ton on metric tons over 300,001.

Notwithstanding the foregoing, container tonnage handled through the Cleveland Europe Express with Spliethoff Transport B.V. will not be counted for purposes of the Fees.

All references to tons pursuant to this paragraph shall mean metric tons.

- 2.1c. Transshipment. For the purpose of paragraph 2.1b, any cargoes which are transshipped from barge to vessel, or vice versa, either directly or via the docks at the Authority, shall be counted only once so long as the cargo remains the same and does not undergo any substantial transformation. The date the vessel or barge arrives at the docks at the Authority shall be determinative of the time period to which the cargo is allocable.
- 2.1d. Invoicing. The Authority shall invoice the Operator periodically for all amounts due for the Fees, pursuant to the terms of this Schedule, and the Operator shall pay such invoices within 30 calendar days of the Lessee's receipt of such invoice.
- 2.1e. Equipment Rental. Operator agrees to pay to the Authority fixed rental during the Term in the amount of Ten Thousand Dollars and Zero Cents (\$10,000.00) per year for each Hyster Reach Stacker. The charges for the Liebherr 280 Mobile Harbor Cranes will be invoiced based upon as stated in the Authority's most recently adopted Tariff No. 1-B (the "Hourly Charge").

Fixed Rent shall be payable monthly in advance on the first day of each calendar month during the Term. The Hourly Charge will be payable within ten (10) days of Operator's receipt of the invoice for the prior month's use.

The Authority's invoices will be based on the terms of this Schedule and the vessel manifests.

- 2.1f. Documentation. The Operator shall submit to the Authority, in a timely manner, all directly relevant documents, including vessel manifests covering all cargoes loaded or unloaded, as may be reasonably requested by

the Authority with respect to the Operator's activity at the Authority, pursuant to this Schedule and the Agreement.

- 2.2 Place of Payments. All payments hereunder shall be made by the Operator to the Authority, by check or draft, payable to the order of the Authority, and delivered to the Authority personally or by mail in care of the President, Cleveland-Cuyahoga County Port Authority, 1100 West 9th Street, Suite 300, Cleveland, Ohio, 44113.
- 2.3 Other Charges and Fees. The Authority and the Operator agree that, from and after April 1, 2025, this Schedule shall supersede and replace, in all respects, any and all Tariffs and Addenda to the Agreement, as or may have been from time to time adopted by the Authority, for the Premises, including any and all charges relating to demurrage and storage, such that the rent and other charges herein set forth shall constitute the only payment to be made by the Operator to the Authority for the Premises and other charges for goods located on the Premises shall cease as of March 31, 2026 (unless the term is extended per Article II of the Agreement), and, from and after April 1, 2025, the provisions of this Schedule shall apply with respect to said goods. Notwithstanding the foregoing, nothing in the Agreement and this Schedule shall waive the Authority's right to collect, or relieve the Operator from the obligation to pay any fees or charges relating to the use of, or transportation of goods over, property of the Authority other than the Premises, such as docks, wharfs, roads, storage areas and other warehouses which fees and charges include, but may not be limited to dockage, wharfage, and storage charges.

[Signature page follows]

Cleveland-Cuyahoga County Port Authority

By: 

Print Name: William D. Friedman

Title: President & CEO

Date: 12/12/2024

Logistec USA Inc.

By: 

Print Name: Boony Corbis

Title: President

Date: 12/12/2024